TENTATIVE RULINGS

DEPARTMENT C32

Judge Walter Schwarm

September 26, 2023

(The Law and Motion Calendar will be heard at 9:00 a.m. unless specified otherwise.)

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If the parties agree to submit on the Court's tentative ruling, please call the Court Clerk to inform the court that **all** parties submit on the Court's tentative ruling. The tentative ruling will then become the order of the Court upon a party or parties informing the Court that **all** parties submit to the Court's tentative ruling.

APPEARANCES: Department C32 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at https://www.occourts.org/media-relations/civil.html prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at https://www.occourts.org/media-relations/aci.html. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") are also available at https://www.occourts.org/media-relations/aci.html. Parties preferring to appear in-person for law and motion hearings may do so by providing notice of in-person appearance to the court and all other parties five (5) days in advance of the hearing. (see Appearance Procedures, section 3(c)(1).).

PUBLIC ACCESS: Media and public access to proceedings will be in person in the courtroom where the hearing is scheduled. In the event any proceeding is conducted entirely remotely, the press and public can obtain public access by contacting the courtroom. Phone numbers for the courtrooms can be found at https://www.occourts.org/directory/civil/CivilPhoneDepartmentDirectory.pdf. In those instances where proceedings will be conducted only by remote video and/or audio, access will be provided to interested parties by contacting the courtroom clerk, preferably 24 hours in advance. No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and

- For additional information, please see the court's website at [Court Reporter Interpreter Services] for additional information regarding the availability of court reporters.

#	Case Name	Tentative
1	30-2022-01296554 Alsoltani v. Tokatlian 8:30 a.m.	Order to Show Cause regarding Dismissal.
2	30-2022-01291297 Chicanxs Unidxs De Orange County v. Todd Spitzer 8:30 a.m.	Status Conference.
3	30-2020-01124479 Gendreau v. Global Financial Data Incorporated	Interested Party's (Jane Doe) Request for Evidentiary Hearing re: Motion to Disqualify scheduled for 9-26-23 is **CONTINUED** to 10-24-23 at 9:00 a.m. in Department C32 a date and time to be determined at the hearing on 9-26-23. On 8-1-23, Interested Party's Motion to Disqualify Attorney (Motion) previously came on for hearing. The court continued the Motion to Disqualify to 9-26-23, and ordered Interested Party to file a brief in support of her request for an evidentiary hearing by 8-14-23. (8-1-23 Minute Order.) The court ordered Plaintiffs (Pierre Gendreau and Lindsay Amendola) to file an opposition brief by 8-29-23. Plaintiffs filed a redacted version of their Supplemental Brief on 9-12-23 under ROA No. 268. The redacted version contains significant redactions such that the court is unable to determine the arguments that Plaintiffs are advancing. The court's file does not reflect that that Plaintiffs have filed or lodged an unredacted version of their Supplemental Brief. Based on the above, the court **CONTINUES** Interested Party's Request for Evidentiary Hearing re: Motion to Disqualify to a date and time to be determined at the hearing on 9-26-23 to allow Plaintiffs to file an unredacted version of their Supplemental Brief. Court orders clerk to give notice.

4	30-2019-01094012 Iwanaga v. Global Financial Data Incorporated	Interested Party's (Jane Doe) Request for Evidentiary Hearing re: Motion to Disqualify scheduled for 9-26-23 is **CONTINUED** to 10-24-23 at 9:00 a.m. in Department C32 a date and time to be determined at the hearing on 9-26-23. On 8-1-23, Interested Party's Motion to Disqualify Attorney (Motion) previously came on for hearing. The court continued the Motion to Disqualify to 9-26-23, and ordered Interested Party to file a brief in support of her request for an evidentiary hearing by 8-14-23. (8-1-23 Minute Order.) The court ordered Plaintiff (Kevin Iwanaga) to file an opposition brief by 8-29-23. (8-1-23 Minute Order.) Plaintiff filed a redacted version of Plaintiff's Supplemental Brief on 8-29-23 under ROA No. 805. The redacted version contains significant redactions such that the court is unable to determine the arguments that Plaintiff is advancing. The court's file does not reflect that that Plaintiff has filed or lodged an unredacted version of Plaintiff's Supplemental Brief. Based on the above, the court **CONTINUES** Interested Party's Request for Evidentiary Hearing re: Motion to Disqualify to a date and time to be determined at the hearing on 9-26-23 to allow Plaintiff to file an unredacted version of their Supplemental Brief. Court orders clerk to give notice.
5	30-2021-01231084 Joher v. Joher	**<u>Motion No. 1:</u>** **Defendants' (Chade M. Joher, Hussam H. Joher, and Concept Developer Inc.) Demurer to Hassan S. Joher and Mike Johar's Second Amended Complaint (Demurrer), filed on 5-15-23 under ROA No. 178, is OVERRULED in part and SUSTAINED in part.** "A demurrer tests the pleading alone, and not the evidence or the facts alleged. . . . To the extent there are factual issues in dispute, however, this court must assume the truth not only of all facts properly pled, but also of those facts that may be implied or inferred from those expressly alleged in the complaint. [Citations.]" (*City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445, 459.) Code of Civil Procedure section 452, states, "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." *Perez v. Golden Empire Transportation Transit District* (2012) 209 Cal.App.4th 1228, 1238, provides, "This rule of liberal construction

		means that the reviewing court draws inferences favorable to the plaintiff, not the defendant. [Citations.]" The Demurrer challenges the first, second, third, and fourth causes of action contained in Plaintiffs' (Hassan S. Joher and Mike Johar) Second Amended Complaint (SAC), filed on 4-12-23 under ROA No. 145, pursuant to Code of Civil Procedure section 430.10, subdivisions (b), (e), and (f). The Demurrer challenges the fifth cause of action pursuant to Code of Civil Procedure section 430.10, subdivisions (g), (e), and (f). The Demurrer challenges the sixth cause of action pursuant to Code of Civil Procedure section 430.10, subdivisions (g) and (f). The Demurrer challenges the seventh cause of action pursuant to Code of Civil Procedure section 430.10, subdivision (e). **Corporations Code section 800 as to the First, Second, Third, Fourth, and Fifth Causes of Action:** The Demurrer states, "The SAC admits plaintiffs did not make the required prerequisite Corporations Code§ 800(b)(2) demands on Royal's board prior to filing this action." (Demurrer; 5:12-13.) The Demurrer also states, "This demurrer should be sustained as to the first, second, third, fourth and fifth causes of action which are all derivative in pleading." (Demurrer; 7:5-6.) *Desaigoudar v. Meyercord* (2003) 108 Cal.App.4th 173, 183 (*Desaigoudar*), states, "In order to put the issue in context, we begin with some basic principles of corporate law. First among these is the nature of the shareholders' derivative lawsuit. Because a corporation is a legal entity separate from its shareholders [citation], when a corporation has suffered an injury to its property the corporation is the party that possesses the right to sue for redress. [Citation.] If a corporation fails to pursue redress of an injury, a shareholder may file a derivative action on behalf of the corporation. The 'derivative' action is so called because the rights of the plaintiff shareholders derive from the primary corporate right to redress the wrongs against it. [Citation.]" Corporations Code Section 800, subdivision (b), states, "No action may be instituted or maintained in right of any domestic or foreign corporation by any holder of shares or of voting trust certificates of the corporation unless both of the following conditions exist: [¶] (1) The plaintiff alleges in the complaint that plaintiff was a shareholder, of record or beneficially, or the holder of voting trust certificates at the time of the transaction or any part thereof of which plaintiff complains or that plaintiff's shares or voting trust certificates thereafter devolved upon plaintiff by operation of law from a holder who was

		a holder at the time of the transaction or any part thereof complained of; provided, that any shareholder who does not meet these requirements may nevertheless be allowed in the discretion of the court to maintain the action on a preliminary showing to and determination by the court, by motion and after a hearing, at which the court shall consider such evidence, by affidavit or testimony, as it deems material, that (i) there is a strong prima facie case in favor of the claim asserted on behalf of the corporation, (ii) no other similar action has been or is likely to be instituted, (iii) the plaintiff acquired the shares before there was disclosure to the public or to the plaintiff of the wrongdoing of which plaintiff complains, (iv) unless the action can be maintained the defendant may retain a gain derived from defendant's willful breach of a fiduciary duty, and (v) the requested relief will not result in unjust enrichment of the corporation or any shareholder of the corporation; and [¶] (2) The plaintiff alleges in the complaint with particularity plaintiff's efforts to secure from the board such action as plaintiff desires, or the reasons for not making such effort, and alleges further that plaintiff has either informed the corporation or the board in writing of the ultimate facts of each cause of action against each defendant or delivered to the corporation or the board a true copy of the complaint which plaintiff proposes to file." *Oakland Raiders v. National Football League* (2001) 93 Cal.App.4th 572, 587 (*Raiders*), provides, "The test for proving demand futility is whether the facts show a reasonable doubt that (1) the directors are disinterested and independent, and (2) the challenged transaction was otherwise the product of a valid exercise of business judgment." [Citation.] But general, conclusory facts are insufficient. [Citation.]" *Bader v. Anderson* (2009) 179 Cal.App.4th 775, 792 (*Bader*), provides, "A director will be deemed not to be disinterested if the facts alleged 'demonstrate[] a potential personal benefit or detriment to the director as a result of the decision.' [Citations.]" *Charter Township of Clinton Police & Fire Retirement System v. Martin* (2013) 219 Cal.App.4th 924, 934-935, states, " 'When it is clear that making a demand upon the company's board of directors would be futile, the demand requirement may be excused. *See Aronson*[, *supra*], 473 A.2d [at p.] 815. . . (laying out standard for demand futility). In order to excuse the demand requirement, a derivative complaint must allege particularized facts creating a 'reasonable doubt' that: (1) the directors were disinterested and independent; or (2) the challenged transaction was the product of a valid exercise of business judgment. *See* [*ibid.*]; *see also Brehm*[, *supra,*] 746 A.2d [at p.] 256. If either prong is satisfied, then a plaintiff has

met the demand futility burden and the demand requirement is excused. *See In re Intel Corp. Derivative Litig.,* 621 F.Supp.2d 165 (D.Del.2009). If a plaintiff fails to satisfy the first prong of *Aronson,* there is a presumption that the board's actions were the product of a valid exercise of business judgment. *See Beam v. Stewart,* 845 A.2d 1040, 1049 (Del.2004); *see also Intel,* 621 F.Supp.2d at [p.] 170. Under the second prong of *Aronson,* "plaintiffs must plead particularized facts sufficient to raise (1) a reason to doubt that the action was taken honestly and in good faith or (2) a reason to doubt that the board was adequately informed in making the decision." *In re J.P. Morgan Chase & Co. S'holder Litig.,* 906 A.2d 808, 824 (Del.Ch.2005) [(*In re J.P. Morgan Chase*)].' [Citations.]"

Paragraphs 52, 53, and 54 of the SAC sufficiently allege demand futility. Specifically, paragraph 53 of the SAC pleads in part, ". . . any demand to CHADE or HUSSAM to secure the actions . . . would be futile because the allegations in this Complaint arise out of CHADE and HUSSAM's wrongful conduct." (Uppercase in SAC.) These allegations are sufficient to allege Defendant—Chade Joher is not a disinterested director because he has personally benefited from his wrongful conduct. (SAC, ¶¶ 37, 52, 53, and 54.) The SAC sufficiently alleges a doubt that Defendant—Chade Joher is a disinterested director.

As to notice, the SAC pleads, "On or about September 18, 2021, MIKE, on behalf of himself and HASSAN, informed ROYAL's board in writing of the ultimate facts of each derivative cause of action (breach of fiduciary duty, conversion/unlawful distributions, unjust enrichment, breach of contract, promissory estoppel, and aiding and abetting) alleged in this Complaint. . . ." (SAC, ¶ 40; Uppercase in SAC.) The SAC also attaches Exhibit A (SAC, ¶ 44(g)) which is a Demand Letter pursuant to Corporations Code section 800. This Demand Letter is dated 4-10-23 which is two-days before the filing of the FAC on 4-12-23. The Demurrer states, ". . . by plaintiffs' own admission, by this time frame-conditioned notice, plaintiffs 'jumped-the-gun- filing the SAC, a derivative action, two-days later, which is not a reasonable time period to expect any Board to act even if the plaintiffs did not say the board had 90 days." (Demurrer; 6:28-7:3.)

First, the court notes that the Demand Letter sufficiently provides notice as to the derivative causes of action. Second, Corporations Code section 800 does not provide a time period for a corporation to provide a response to a demand before the filing of a complaint. Further, as discussed above, the SAC sufficiently pleads demand futility.

		Thus, the court **OVERRULES** the Demurrer to the first, second, third, fourth, and fifth causes of action to the extent the Demurrer relies on Code of Civil Procedure section 430.10, subdivision (b), by contending Plaintiffs did not comply with Corporations Code section 800. (The court notes that it does not appear that the fourth and fifth causes of action are derivative causes of action. The court addressed the fourth and fifth causes of action as to Defendants' Corporations Code section 800 contention because the Demurrer construed the fourth and fifth causes of action as derivative causes of action. **First Cause of Action (Breach of Fiduciary Duty):** The Demurrer states, "Shareholders, other than controlling shareholders, owe no further duty to other shareholders or to the corporation." (Demurrer; 7:14-15.) Plaintiffs' Opposition to Demurer to Plaintiffs' Second Amended Complaint (Opposition), filed on 9-11-23 under ROA No. 213, states, ". . . while Defendants own a combined total of 50% of Royal's shares, they are still deemed to be 'controlling shareholders' because Defendants have taken complete control of Royal." (Opposition; 7:16-17.) *Meister v. Mensinger* (2014) 230 Cal.App.4th 381, 395 (*Meister*), states, "The elements of a cause of action for breach of fiduciary duty are the existence of a fiduciary relationship, its breach, and damage proximately caused by that breach. [Citation.]" *Singhania v. Uttarwar* (2006) 136 Cal.App.4th 416, 426 (*Singhania*), provides, "California law clearly recognizes that officers and directors owe a fiduciary duty to stockholders and controlling stockholders owe a fiduciary duty to minority stockholders. [Citations.]" *Citron v. Fairchild Camera & Instrument* (Del. 1989) 569 A.2d 53, 70, (*Citron*), states, "Under Delaware law, until the conclusion of the tender offer, Schlumberger owed no fiduciary duty of candor to Fairchild's stockholders. '[A] shareholder who owns less than 50% of a corporation's outstanding stocks does not, without more, become a controlling shareholder of that corporation, with a concomitant fiduciary status.' [Citation.] For a dominating relationship to exist in the absence of controlling stock ownership, a plaintiff must allege domination by a minority shareholder through actual control of corporate conduct. [Citations.]" *University of Southern California v. Superior Court* (2018) 30 Cal.App.5th 429, 446 at footnote 12, states, "We note that *Regents* cited out-of-state cases in support of its holding that universities have a limited special relationship with their students.

		[Citation.] We are free to cite both published and unpublished decisions from other jurisdictions and rely on them as persuasive authority. [Citations.]" (See also, *Apple, Inc. v. Superior Court* (2017) 18 Cal.App.5th 222, 247 at footnote 11.).) The SAC alleges that Defendants—Chade Joher and Hunssam Joher own 50% of Royal Entertainment, Inc. (Royal) (SAC, ¶ 23.) The SAC pleads that Plaintiff—Hassan Joher was the sole director of Royal ". . . until he was outsted from his role of director by . . ." Defendant—Chade Joher. (SAC, ¶ 25; See also, SAC, ¶ 37.) After the alleged ouster, Defendant—Chade Joher became the sole director of Royal. (SAC, ¶ 37.) These allegations sufficiently plead that Defendants—Chade Joher and Hussam Joher are the controlling shareholders of Royal based on Defendant—Chade Joher's role as the sole director of Royal. Thus, the SAC adequately pleads that they owe a fiduciary duty to Plaintiffs. Paragraphs 59-69 of the SAC adequately plead breach of fiduciary duty by Defendants—Chade Joher and Hussam Joher and damages. As to Defendant—Concept Developers, Inc. the SAC does not allege that Defendant—Concept Developers, Inc. owed a fiduciary duty to Plaintiffs. (SAC, ¶ 61.) Therefore, the court **SUSTAINS** the Demurrer as brought by Defendant—Concept Developers, Inc. as to the first cause of action. The court **OVERRULES** the Demurrer as brought by Defendants—Chade Joher and Hussam Joher as to the first cause of action. **Second Cause of Action—Conversion:** *PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP* (2007) 150 Cal.App.4th 384, 395 (*PCO*), states, " 'A cause of action for conversion requires allegations of plaintiff's ownership or right to possession of property; defendant's wrongful act toward or disposition of the property, interfering with plaintiff's possession; and damage to plaintiff. [Citation.] Money cannot be the subject of a cause of action for conversion unless there is a specific, identifiable sum involved, such as where an agent accepts a sum of money to be paid to another and fails to make the payment. [Citation.]' [Citations.] A 'generalized claim for money [is] not actionable as conversion.' [Citations.]" (See also, CACI No. 2100.) The SAC pleads, "Beginning no later than May 2021 and continuing until the present, without any discussion with

		or notice to Plaintiffs, and certainly without Plaintiffs' consent, CHADE and HUSSAM siphoned ROYAL's funds. CHADE and HUSSAM continue to distribute to themselves such sums at a whim and without legal basis or accounting. . . . [¶] The amount of conversion / unlawful distributions shall be proven at trial, but is no less than $500,000 until the present day, with the value of any permanent conversion of ROYAL's funds being at least $2,500,000, including CHADE and HUSSAM's unreimbursed capital contributions." (SAC, ¶¶ 72 and 76; Uppercase in SAC.) These allegations are insufficient to plead a specific, identifiable sum of money as required by *PCO*. Further, paragraph 72 does not allege that Defendant—Concept Developers, Inc. was responsible for the conversion. (SAC, ¶¶ 72 and 75.) Therefore, the court **SUSTAINS** the Demurrer as as to the second cause of action. **Third Cause of Action—Unjust Enrichment:** The Demurrer states, " 'California does not recognize a stand-alone cause of action for unjust enrichment . . .' ." (Demurrer; 9:1-2.) *Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1370 (*Durell*), states, " '[T]here is no cause of action in California for unjust enrichment.' [Citations.] Unjust enrichment is synonymous with restitution. [Citation.] [¶] 'There are several potential bases for a cause of action seeking restitution. For example, restitution may be awarded in lieu of breach of contract damages when the parties had an express contract, but it was procured by fraud or is unenforceable or ineffective for some reason. [Citations.] Alternatively, restitution may be awarded where the defendant obtained a benefit from the plaintiff by fraud, duress, conversion, or similar conduct. In such cases, the plaintiff may choose not to sue in tort, but instead to seek restitution on a quasi-contract theory. . . . [Citations.] In such cases, where appropriate, the law will imply a contract (or rather, a quasi-contract), without regard to the parties' intent, in order to avoid unjust enrichment.' [Citation.] [¶] 'Under the law of restitution, "[a]n individual is required to make restitution if he or she is unjustly enriched at the expense of another. [Citations.] A person is enriched if the person receives a benefit at another's expense. [Citation.]" [Citation.] However, "[t]he fact that one person benefits another is not, by itself, sufficient to require restitution. The person receiving the benefit is required to make restitution only if the circumstances are such that, as between the two

		individuals, it is *unjust* for the person to retain it. [Citation.]" ' [Citation.] As a matter of law, an unjust enrichment claim does not lie where the parties have an enforceable express contract. [Citation.]" (Italics in *Durell*.) "The elements of an unjust enrichment claim are the 'receipt of a benefit and [the] unjust retention of the benefit at the expense of another.' [Citation.]" (*Peterson v. Cellco Partnership (Peterson)* (2008) 164 Cal.App.4th 1583, 1593.) Although unjust enrichment may not be a cause of action, Defendants have not provided the court with any authority that it is improper to plead a claim for unjust enrichment as a remedy for the purpose of placing Defendants on notice that Plaintiff is seeking restitution. Therefore, the court **OVERRULES** the Demurrer to the third cause of action as brought by Defendants—Chade Joher and Hussam Joher. The court **SUSTAINS** the as brought by Defendant—Concept Developers, Inc. because the SAC does not allege any cause of action against this Defendant to support the remedy of unjust enrichment. **Fourth Cause of Action—Breach of Oral Contract:** *Maxwell v. Dolezal* (2014) 231 Cal.App.4th 93, 97-98, "To establish a cause of action for breach of contract, the plaintiff must plead and prove (1) the existence of the contract, (2) the plaintiff's performance or excuse for nonperformance, (3) the defendant's breach, and (4) resulting damages to the plaintiff. [Citations.]" *Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 453 (*Stockton*), states, "The elements of a breach of oral contract claim are the same as those for a breach of written contract: a contract; its performance or excuse for nonperformance; breach; and damages. [Citations.]" *McKell v. Washington Mut., Inc*. (2006) 142 Cal.App.4th 1457, 1489 (*McKell*), provides, "A written contract may be pleaded either by its terms—set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference—or by its legal effect." Paragraphs 82-86 sufficiently breach of an oral contract between Defendants—Chade Joher and Hussam Joher regarding the transfer of assets from Royal to Defendant—Concept Developers, Inc. The SAC, however, does not alleged that Defendant—Concept Developers, Inc. was a party to this contract.

Therefore, the court **SUSTAINS** the Demurrer as brought by Defendant—Concept Developers, Inc. as to the fourth cause of action. The court **OVERRULES** the Demurrer as brought by Defendants—Chade Joher and Hussam Joher as to the fourth cause of action.

Fifth Cause of Action (Promissory Estoppel):

Jones v. Wachovia Bank (2014) 230 Cal.App.4th 935, 944-945 (*Jones*), states, " 'The elements of a promissory estoppel claim are "(1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) [the] reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by his reliance.' [Citation.]' [Citation.]"

The Demurrer states, "The Fifth cause of action does not state whether this contractual promise entered into in December of 2018 is written or oral." (Demurrer; 10:19-20.)

Paragraphs 88-93 of the SAC sufficiently allege a cause of action for promissory estoppel. Assuming, without deciding that Code of Civil Procedure section 430.10, subdivision (g), to a promissory estoppel cause of action, the court finds that the fifth cause of action adequately alleges an oral contract. Paragraph 87 incorporates the previous paragraphs of the SAC which includes paragraph 84 of the SAC. The subject of the fifth cause of action is the transfer of assets from Royal to Defendant—Concept Developers, Inc. (SAC, ¶ 88.) The SAC, however does not allege that Defendant—Concept Developers, Inc. made promises to Plaintiffs. (SAC, ¶ 89.)

Therefore, the court **SUSTAINS** the Demurrer as brought by Defendant—Concept Developers, Inc. as to the fifth cause of action. The court **OVERRULES** the Demurrer as brought by Defendants—Chade Joher and Hussam Joher as to the fifth cause of action.

Sixth Cause of Action—Aiding and Abetting:

Nasrawi v. Buck Consultants LLC (2014) 231 Cal.App.4th 328, 343 (*Nasrawi*), provides, "The elements of a claim for aiding and abetting a breach of fiduciary duty are: (1) a third party's breach of fiduciary duties owed to plaintiff; (2) defendant's actual knowledge of that breach of fiduciary duties; (3) substantial assistance or encouragement by defendant to the third party's breach; and (4) defendant's conduct was a substantial factor in causing harm to plaintiff. [Citations.]"

		American Master Lease LLC v. Idanta Partners, Ltd. (2014) 225 Cal.App.4th 1451, 1477 (*American Master Lease*), states, "Thus, there are two different theories pursuant to which a person may be liable for aiding and abetting a breach of fiduciary duty. One theory, like conspiracy to breach a fiduciary duty, requires that the aider and abettor owe a fiduciary duty to the victim and requires only that the aider and abettor provide substantial assistance to the person breaching his or her fiduciary duty. [Citations.] On this theory, California law treats aiding and abetting a breach of fiduciary duty and conspiracy to breach a fiduciary duty similarly. Courts impose liability for concerted action that violates the aider and abettor's fiduciary duty. [Citations.] The second theory for imposing liability for aiding and abetting a breach of fiduciary duty arises when the aider and abettor commits an independent tort. [Citations.] This occurs when the aider and abettor makes ' "a conscious decision to participate in tortious activity for the purpose of assisting another in performing a wrongful act." ' [Citations.]" The court has found that the SAC alleges a viable cause of action for breach of fiduciary duty as to Defendants—Chade Joher and Hussam Joher. Paragraphs 94-100 sufficiently plead aiding and abetting liability against Defendants—Chade Joher and Hussam Joher. As to Defendant—Concept Developers, Inc., the SAC pleads that Defendant—Concept Developers, Inc. aided and abetted based on an agency, alter ego, or corporate shell theory based on the acts of Defendant—Chade Joher and Hussam Joher. (SAC, 98.) The SAC does not sufficiently plead acts Defendant—Concept Developer's Inc. that aided and abetted Defendants—Chade Joher and Hussam Joher in their breach of fiduciary duty. Therefore, the court **SUSTAINS** the Demurrer as brought by Defendant—Concept Developers, Inc. as to the sixth cause of action. The court **OVERRULES** the Demurrer as brought by Defendants—Chade Joher and Hussam Joher as to the sixth cause of action. **Seventh Cause of Action—Assault and Battery:** *So v. Shin* (2013) 212 Cal.App.4th 652, 668-669 (*So*), explains, "The essential elements of a cause of action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed she was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat;

		(3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm. [Citations.] The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching. [Citations.]” Paragraphs 41, 102, and 103 of the SAC adequately plead a cause of action for assault and battery. Therefore, the court **OVERRULES** the Demurrer to the seventh cause of action. To the extent the Demurrer relies on Code of Civil Procedure section 430.10, subdivision (f), to challenge the above causes of action, the court **OVERRULES** the Demurrer. The FAC is not so uncertain as to prevent Defendant from providing an informed response. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695 (*Fistes*.) Based on the above, the court **SUSTAINS** Defendants’ (Chade M. Joher, Hussam H. Joher, and Concept Developer Inc.) Demurer to Hassan S. Joher and Mike Johar’s Second Amended Complaint, filed on 5-15-23 under ROA No. 178, as to all of the causes of action alleged against Defendant—Concept Developers, Inc. The court **SUSTAINS** the Demurrer as to the second cause of action as brought by Defendants—Chade Joher and Hussam Joher. The court **OVERRULES** the Demurrer as to the remaining causes of action as brought by Defendants—Chade Joher and Hussam Joher. As to the causes of action to which the court has sustained the Demurrer, *Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 994 (*Heritage*), states, “The court abuses its discretion in sustaining the demurrer without leave to amend if the plaintiff can show a reasonable possibility of curing the defect in the complaint by amendment. [Citation.] Heritage has the burden of proving that an amendment would cure the defect. [Citation.]” The court intends to sustain the Demurrer without leave to amend unless Plaintiff appears at the hearing on 9-26-23 and can demonstrate a reasonable possibility of curing the defects identified in the court’s ruling. Defendants are to give notice. **<u>Motion No. 2</u>**

		Defendant's (Royal Entertainment Inc.) Demurrer to Hassan S. Joher and Mike Joher's Second Amended Complaint (Demurrer), filed on 5-15-23 under ROA No. 174, is OVERRULED. The Demurrer states, "The SAC admits plaintiffs did not make the required prerequisite Corporations Code§ 800(b)(2) demands on Royal's board prior to filing this action." (Demurrer; 4:24-25.) The Demurrer makes the same contentions that the court the court addressed in ruling on Motion No. 1 regarding the application of Corporations Code section 800. Thus, the court **OVERRULES** Defendant's (Royal Entertainment Inc.) Demurrer to Hassan S. Joher and Mike Joher's Second Amended Complaint, filed on 5-15-23 under ROA No. 174, for the same reasons as stated in Motion No. 1 regarding the application of Corporations Code section 800. "A demurrer tests the pleading alone, and not the evidence or the facts alleged. . . . To the extent there are factual issues in dispute, however, this court must assume the truth not only of all facts properly pled, but also of those facts that may be implied or inferred from those expressly alleged in the complaint. [Citations.]" (*City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445, 459.) Code of Civil Procedure section 452, states, "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." *Perez v. Golden Empire Transportation Transit District* (2012) 209 Cal.App.4th 1228, 1238, provides, "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant. [Citations.]" The Demurrer challenges the first, second, third, and fourth causes of action contained in Plaintiffs' (Hassan S. Joher and Mike Johar) Second Amended Complaint (SAC), filed on 4-12-23 under ROA No. 145, pursuant to Code of Civil Procedure section 430.10, subdivisions (b) and (e). The Demurrer challenges the fifth cause of action pursuant to Code of Civil Procedure section 430.10, subdivision (e). **Corporations Code section 800 as to the First, Second, Third, Fourth, and Fifth Causes of Action:** The Demurrer states, "The SAC admits plaintiffs did not make the required prerequisite Corporations Code§ 800(b)(2) demands on Royal's board prior to filing this action." (Demurrer; 4:24-25.) The Demurrer also states,

		". . . this demurrer should be sustained as to the first, second, third, fourth and fifth causes of action which are all derivative in pleading." (Demurrer; 6:21-22.) *Desaigoudar v. Meyercord* (2003) 108 Cal.App.4th 173, 183 (*Desaigoudar*), states, "In order to put the issue in context, we begin with some basic principles of corporate law. First among these is the nature of the shareholders' derivative lawsuit. Because a corporation is a legal entity separate from its shareholders [citation], when a corporation has suffered an injury to its property the corporation is the party that possesses the right to sue for redress. [Citation.] If a corporation fails to pursue redress of an injury, a shareholder may file a derivative action on behalf of the corporation. The 'derivative' action is so called because the rights of the plaintiff shareholders derive from the primary corporate right to redress the wrongs against it. [Citation.]" Corporations Code Section 800, subdivision (b), states, "No action may be instituted or maintained in right of any domestic or foreign corporation by any holder of shares or of voting trust certificates of the corporation unless both of the following conditions exist: [¶] (1) The plaintiff alleges in the complaint that plaintiff was a shareholder, of record or beneficially, or the holder of voting trust certificates at the time of the transaction or any part thereof of which plaintiff complains or that plaintiff's shares or voting trust certificates thereafter devolved upon plaintiff by operation of law from a holder who was a holder at the time of the transaction or any part thereof complained of; provided, that any shareholder who does not meet these requirements may nevertheless be allowed in the discretion of the court to maintain the action on a preliminary showing to and determination by the court, by motion and after a hearing, at which the court shall consider such evidence, by affidavit or testimony, as it deems material, that (i) there is a strong prima facie case in favor of the claim asserted on behalf of the corporation, (ii) no other similar action has been or is likely to be instituted, (iii) the plaintiff acquired the shares before there was disclosure to the public or to the plaintiff of the wrongdoing of which plaintiff complains, (iv) unless the action can be maintained the defendant may retain a gain derived from defendant's willful breach of a fiduciary duty, and (v) the requested relief will not result in unjust enrichment of the corporation or any shareholder of the corporation; and [¶] (2) The plaintiff alleges in the complaint with particularity plaintiff's efforts to secure from the board such action as plaintiff desires, or the reasons for not making such effort, and alleges further that plaintiff has either informed the corporation or the board in writing of the ultimate facts of each cause

		of action against each defendant or delivered to the corporation or the board a true copy of the complaint which plaintiff proposes to file." *Oakland Raiders v. National Football League* (2001) 93 Cal.App.4th 572, 587 (*Raiders*), provides, "The test for proving demand futility is whether the facts show a reasonable doubt that (1) the directors are disinterested and independent, and (2) the challenged transaction was otherwise the product of a valid exercise of business judgment." [Citation.] But general, conclusory facts are insufficient. [Citation.]" *Bader v. Anderson* (2009) 179 Cal.App.4th 775, 792 (*Bader*), provides, "A director will be deemed not to be disinterested if the facts alleged 'demonstrate[] a potential personal benefit or detriment to the director as a result of the decision.' [Citations.]" *Charter Township of Clinton Police & Fire Retirement System v. Martin* (2013) 219 Cal.App.4th 924, 934-935, states, " 'When it is clear that making a demand upon the company's board of directors would be futile, the demand requirement may be excused. *See Aronson*[, *supra*], 473 A.2d [at p.] 815. . . (laying out standard for demand futility). In order to excuse the demand requirement, a derivative complaint must allege particularized facts creating a 'reasonable doubt' that: (1) the directors were disinterested and independent; or (2) the challenged transaction was the product of a valid exercise of business judgment. *See* [*ibid.*]; *see also Brehm*[, *supra,*] 746 A.2d [at p.] 256. If either prong is satisfied, then a plaintiff has met the demand futility burden and the demand requirement is excused. *See In re Intel Corp. Derivative Litig.,* 621 F.Supp.2d 165 (D.Del.2009). If a plaintiff fails to satisfy the first prong of *Aronson,* there is a presumption that the board's actions were the product of a valid exercise of business judgment. *See Beam v. Stewart,* 845 A.2d 1040, 1049 (Del.2004); *see also Intel,* 621 F.Supp.2d at [p.] 170. Under the second prong of *Aronson,* "plaintiffs must plead particularized facts sufficient to raise (1) a reason to doubt that the action was taken honestly and in good faith or (2) a reason to doubt that the board was adequately informed in making the decision." *In re J.P. Morgan Chase & Co. S'holder Litig.,* 906 A.2d 808, 824 (Del.Ch.2005) [(*In re J.P. Morgan Chase*)].' [Citations.]" Paragraphs 52, 53, and 54 of the SAC sufficiently allege demand futility. Specifically, paragraph 53 of the SAC pleads in part, ". . . any demand to CHADE or HUSSAM to secure the actions . . . would be futile because the allegations in this Complaint arise out of CHADE and HUSSAM's wrongful conduct." (Uppercase in SAC.) These allegations are sufficient to allege Defendant—Chade

		Joher is not a disinterested director because he has personally benefited from his wrongful conduct. (SAC, ¶¶ 37, 52, 53, and 54.) The SAC sufficiently alleges a doubt that Defendant—Chade Joher is a disinterested director. As to notice, the SAC pleads, "On or about September 18, 2021, MIKE, on behalf of himself and HASSAN, informed ROYAL's board in writing of the ultimate facts of each derivative cause of action (breach of fiduciary duty, conversion/unlawful distributions, unjust enrichment, breach of contract, promissory estoppel, and aiding and abetting) alleged in this Complaint. . . ." (SAC, ¶ 40; Uppercase in SAC.) The SAC also attaches Exhibit A (SAC, ¶ 44(g)) which is a Demand Letter pursuant to Corporations Code section 800. This Demand Letter is dated 4-10-23 which is two-days before the filing of the FAC on 4-12-23. The Demurrer states, ". . . by plaintiffs' own admission, by this time frame-conditioned notice, plaintiffs 'jumped-the-gun- filing the SAC, a derivative action, two-days later, which is not a reasonable time period to expect any Board to act even if the plaintiffs did not say the board had 90 days." (Demurrer; 6:28-7:3.) First, the court notes that the Demand Letter sufficiently provides notice as to the derivative causes of action. Second, Corporations Code section 800 does not provide a time period for a corporation to provide a response to a demand before the filing of a complaint. Further, as discussed above, the SAC sufficiently pleads demand futility. Based on the above, the court **OVERRULES** Defendant's (Royal Entertainment Inc.) Demurrer to Hassan S. Joher and Mike Joher's Second Amended Complaint filed on 5-15-23 under ROA No. 174. (The court notes that it does not appear that the fourth and fifth causes of action are derivative causes of action. The court addressed the fourth and fifth causes of action as to Defendants' Corporations Code section 800 contention because the Demurrer construed the fourth and fifth causes of action as derivative causes of action.) Plaintiffs are to give notice. **<u>Motion No. 3:</u>** **Based on Plaintiffs' (Hassan S. Joher and Mike A. Johar) Notice of Withdrawal of Demurrer to Cross-Complaint (filed on 9-14-23 under ROA No. 223), Plaintiffs' Demurrer to Cross-Complaint (filed on 4-13-23 under ROA No. 151, and scheduled for hearing on 9-26-23 (See 5-19-23 Minute Order.)) is OFF CALENDAR.**

6	30-2022-01249712 Doan v. Whole Foods Market, Inc.	Plaintiff’s (Kathleen Doan) Motion for an Order Quashing or Modifying Defendants’ Deposition Subpoena for Production of Business Records on Third Parties Electramecannica, Dunkin’ Donuts LLC, and Doordash,Inc. (Motion), filed on 5-17-23 under ROA No 78, is **GRANTED** in part and **DENIED** in part as set forth below. Code of Civil Procedure section 1987.1 states, in part, “(a) If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person. [¶] (b) The following persons may make a motion pursuant to subdivision (a): [¶] (1) A party. [¶] (2) A witness. . . .” Code of Civil Procedure section 1985.3 states, in part: “. . . (g) Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum. Notice of the bringing of that motion shall be given to the witness and deposition officer at least five days prior to production. The failure to provide notice to the deposition officer shall not invalidate the motion to quash or modify the subpoena duces tecum but may be raised by the deposition officer as an affirmative defense in any action for liability for improper release of records. . . .” “The right of privacy is an ‘ “inalienable right” ’ secured by article I, section 1 of the California Constitution. [Citation.] The right of privacy protects against the unwarranted, compelled disclosure of private or personal information and ‘extends to one’s confidential financial affairs as well as to the details of one's personal life.’ [Citation.] (*SCC Acquisitions, Inc. v. Superior Court* (2015) 243 Cal.App.4th 741, 754.) *San Diego Trolley, Inc. v. Superior Court* (2001) 87 Cal.App.4th 1083, 1097 (*San Diego* [disapproved on other

		grounds in *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557, fn. 8]), provides, "While we have not been directed to any statutory privilege which protects this information from disclosure, it is clear Cooper's personnel records and employment history are within the scope of the protection provided by the state and federal Constitutions. [Citations.]" "The constitutional right of privacy is not absolute; it may be abridged to accommodate a compelling public interest. [Citations.] One such interest, evidenced by California's broad discovery statutes, is ' "the historically important state interest of facilitating the ascertainment of truth in connection with legal proceedings." ' [Citation.] When an individual's right of privacy in his financial affairs conflicts with the public need for discovery in litigation, the competing interests must be carefully balanced. [Citation.] Even where the balance weighs in favor of disclosure of private information, the scope of the disclosure will be narrowly circumscribed; such an invasion of the right of privacy ' "must be drawn with narrow specificity" ' and is permitted only to the extent necessary for a fair resolution of the lawsuit." [Citations.] (*Moskowitz v. Superior Court* (1982) 137 Cal.App.3d 313, 316; disapproved on other grounds in *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557, fn. 8.) *Williams v. Superior Court (Williams)* (2017) 3 Cal.5th 531, 552 (*Williams*), explains, "The party asserting a privacy right must establish a legally protected privacy interest, and objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citations.] The party seeking information may raise in response whatever legitimate and important countervailing interest disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interest or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. [Citation.]" "To the extent prior cases require a party seeking discovery of private information to always establish a compelling interest or compelling need, without regard to the other considerations articulated in *Hill v. National Collegiate Athletic Assn., supra*, 7 Cal.4th 1, 26 Cal.Rptr.2d 834, 865 P.2d 633, they are disapproved." (*Id*., at p. 557.) The Motion states, "Here, Defendant cannot justify seeking plaintiff's employment records—which, again, include all documentation relating to Doan's admittance, onboarding, compensation, performance, discipline, duties, and disability status — from her subsequent employers – as none of the aforementioned has any relation or relevance to the action at hand." (Motion; 6:8-

		12.) Defendant's (Mrs. Gooch's Natural Foods Markets, Inc. dba Whole Foods Market ('WFM'), Whole Foods Market, Inc., Whole Foods Market California, Inc., Leo Contreras, and Juan Navarro) Opposition to Plaintiff's Motion for an Order Quashing or Modifying Defendants' Deposition Subpoena for Production of Business Records on Third Parties (Opposition), filed on 9-12-23 under ROA No. 107, asserts, "Specifically, the records are directly relevant to her credibility, and to show whether Plaintiff truly needed an accommodation for her alleged disabilities, whether Plaintiff mitigated her damages, whether Plaintiff had preexisting conditions or alternative stressors, and whether has a history of Plaintiff making meritless complaints of sexual harassment." (Opposition; 6:28-7:4.) Each of the Deposition Subpoenas (issued on 4-20-23 to Whole Foods Market, Inc., DoorDash, Inc., and Dunkin' Donuts LLC) requests the following records: "1. All DOCUMENT(S) constituting an application for employment by DOAN for employment with YOU. [¶] 2. All resumes, curriculum vitae, or other DOCUMENT(S) summarizing DOAN's employment history and/or qualifications. [¶] 3. Any and all interview notes or summaries that relate to DOAN. [¶] 4. Any and all DOCUMENT(S) that relate or refer to offer of employment to DOAN by YOU. [¶] 5. Any and all DOCUMENT(S) that relate or refer to termination of DOAN's employment. [¶] 6. Any and all DOCUMENT(S) that describe DOAN's job responsibilities, salary, work schedule, hours worked, and performance during her employment with YOU. [¶] 7. Any and all DOCUMENT(S) that reflect the compensation YOU paid to DOAN for her services." (Muhammad Decl., ¶ 3 and Exhibit 1; Uppercase in each Deposition Subpoena.) Plaintiff's First Amended Complaint (FAC), filed on 10-11-22 under ROA No. 66, seeks the following damages: "*Economic damages*: As a consequence of Defendants' conduct, Plaintiff has suffered and will suffer harm, including lost past and future income and employment benefits, damage to her career, and lost wages, overtime, unpaid expenses, and penalties, as well as interest on unpaid wages at the legal rate from and after each payday on which those wages should have been paid, in a sum to be proven at trial. [¶] *Non-economic damages*: As a consequence of Defendants' conduct, Plaintiff has suffered and will suffer psychological and emotional distress, humiliation, and mental and physical pain and anguish, in a sum to be proven at trial." (FAC, ¶¶ 17 and 18; Italics in FAC.) The court finds that Plaintiff has a legally protected privacy interest in Plaintiff's employment records under

		San Diego. Defendants have raised an important countervailing interest in that the records are necessary for the ascertainment of truth in legal proceedings as to lost past and future earnings. In conducting the balancing under *Williams*, the FAC specifically requests damages for lost past and future income and employment benefits. CACI Nos. 3961 and 3962 describe the calculations used to determine damages based on mitigation. Based on this balancing, the court finds that Request Nos. 4, 6, and 7 request records relevant to Plaintiff's claims for lost past and future earnings. Therefore, the court finds that Defendants' countervailing interest outweighs Plaintiff's right to privacy as to Request Nos. 4, 6, and 7 because the FAC places Plaintiff's lost past and future earnings at issue. As to Request No. 1, the court finds that Defendants' countervailing interest outweighs Plaintiff's right to privacy. Request No. 1 seeks records regarding employment applications Plaintiff submitted to the Deponents. These employment applications may lead to the discovery of admissible evidence as to Plaintiff's employment with Defendant— Mrs. Gooch's Natural Foods Markets, Inc. dba Whole Foods Market (WFM). Specifically, these employment applications may contain information regarding Plaintiff's employment with WFM. Therefore, the court **DENIES** the Motion as to Request No. 1. As to Requests Nos. 2, 3, and 5, the court finds that Plaintiff's interest in the privacy of Plaintiff's employment records outweighs the countervailing interest in ascertaining the truth in legal proceedings because these requests are overbroad. For example, Request Nos. 2, 3, and 5 encompass records related to Plaintiff's explanation of benefits as to Plaintiff's health insurance, and other health issues. Therefore, the court **GRANTS** the Motion as to Request Nos. 2, 3, and 5. Based on the above, the court **GRANTS** Plaintiff's (Kathleen Doan) Motion for an Order Quashing or Modifying Defendants' Deposition Subpoena for Production of Business Records on Third Parties Electramecannica, Dunkin' Donuts LLC, and Doordash,Inc., filed on 5-17-23 under ROA No 78, as to Request Nos. 2, 3, and 5. The court **DENIES** the Motion as to Request Nos. 1, 4, 6, and 7. The court **DENIES** Plaintiff's request for a monetary sanction because Plaintiff was substantially justified in bringing this Motion and Defendants were was substantially justified in opposing it. (Code Civ. Proc., § 1987.2, subd. (a).) Defendants are to give notice.

7	30-2022-01246540 Raminfard v. Armijo	**<u>Motion No. 1:</u>** **Based on Plaintiff's (Ashley Raminfard) Notice of Withdrawal of Plaintiff's Motion to Quash subpoenas Seeking Plaintiff's Medical Records Plaintiff's (filed on 9-21-23 under ROA No. 256), Plaintiff's (Ashley Raminfard) Motion to Quash Subpoenas Seeking Plaintiff's Medical Records, or, in the Alternative, for a Protective Order (filed on 4-14-23 under ROA No. 170, and scheduled for hearing on 9-26-23) is OFF CALENDAR.** **<u>Motion No. 2:</u>** **Plaintiff's (Ashley Raminfard) Motion to Quash Subpoenas Seeking Plaintiff's Employment Records, or, in the Alternative, for a Protective Order (Motion), filed on 4-14-23 under ROA No. 173, is GRANTED in part and DENIED in part.** Code of Civil Procedure section 1987.1 states, in part, "(a) If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person. [¶] (b) The following persons may make a motion pursuant to subdivision (a): [¶] (1) A party. [¶] (2) A witness. . . ." Code of Civil Procedure section 1985.3 states, in part: ". . . (g) Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum. Notice of the bringing of that motion shall be given to the witness and deposition officer at least five days prior to production. The failure to provide notice to the deposition officer shall not invalidate the motion to quash or modify the subpoena duces tecum but may be raised by the deposition officer as an affirmative defense in any action for liability for improper release of records. . . ."

		"The right of privacy is an ' "inalienable right" ' secured by article I, section 1 of the California Constitution. [Citation.] The right of privacy protects against the unwarranted, compelled disclosure of private or personal information and 'extends to one's confidential financial affairs as well as to the details of one's personal life.' [Citation.] (*SCC Acquisitions, Inc. v. Superior Court* (2015) 243 Cal.App.4th 741, 754.) *San Diego Trolley, Inc. v. Superior Court* (2001) 87 Cal.App.4th 1083, 1097 (*San Diego* [disapproved on other grounds in *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557, fn. 8]), provides, "While we have not been directed to any statutory privilege which protects this information from disclosure, it is clear Cooper's personnel records and employment history are within the scope of the protection provided by the state and federal Constitutions. [Citations.]" "The constitutional right of privacy is not absolute; it may be abridged to accommodate a compelling public interest. [Citations.] One such interest, evidenced by California's broad discovery statutes, is ' "the historically important state interest of facilitating the ascertainment of truth in connection with legal proceedings." ' [Citation.] When an individual's right of privacy in his financial affairs conflicts with the public need for discovery in litigation, the competing interests must be carefully balanced. [Citation.] Even where the balance weighs in favor of disclosure of private information, the scope of the disclosure will be narrowly circumscribed; such an invasion of the right of privacy ' "must be drawn with narrow specificity" ' and is permitted only to the extent necessary for a fair resolution of the lawsuit." [Citations.] (*Moskowitz v. Superior Court* (1982) 137 Cal.App.3d 313, 316; disapproved on other grounds in *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557, fn. 8.) *Williams v. Superior Court (Williams)* (2017) 3 Cal.5th 531, 552 (*Williams*), explains, "The party asserting a privacy right must establish a legally protected privacy interest, and objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citations.] The party seeking information may raise in response whatever legitimate and important countervailing interest disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interest or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. [Citation.]" "To the extent prior cases require a party seeking discovery of private information to always establish a compelling interest or compelling need,

		without regard to the other considerations articulated in *Hill v. National Collegiate Athletic Assn., supra*, 7 Cal.4th 1, 26 Cal.Rptr.2d 834, 865 P.2d 633, they are disapproved." (*Id*., at p. 557.) Plaintiff seeks to quash the Deposition Subpoenas directed to California State University, Fullerton, Coast Community College District, Fullerton School District, Garden Grove Unified School District, Orange County Registrar of Voters, and Tustin Unified School District issued on 3-20-23. (Phillips Decl., ¶ 3 and Exhibits A, B, C, D, E, and F.) Each of the Deposition Subpoenas request the following records: (1) Wage/ payroll, to include W-2s, W-4s & 1099s; (2) Salary increase/ decrease records; (3) Performance evaluations; (4) Pre-employment physical records; (5) Questionnaires; (6) Job records; (7) Disability payments; (8) Disability claims; (9) Disciplinary notices; (10) Leave of absence records; (11) Attendance records; (12) Hours worked; (13) Time cards; (14) Supervisor review notes; (15) Work related injury records; (16) Workers compensation claims; (17) Insurance benefits; and (18) And all other records pertaining to Ashley Raminfard for all dates. (Phillips Decl., ¶ 3 and Exhibits A, B, C, D, E, and F.) Defendant issued these Deposition Subpoenas to the Deponents on 3-20-23. (Phillips Decl., ¶ 3 and Exhibits A, B, C, D, E, and F.) Defendant's (North Orange County Community College District) Opposition to Motion to Quash Subpoenas Seeking Plaintiff's Employment Records (Opposition), filed on 9-6-23 under ROA No. 211, states, "Plaintiff is seeking lost past and future wages. This, of course, triggers plaintiff's duty to mitigate her damages." (Opposition; 3:21-23.) Plaintiff's First Amended Complaint (FAC), filed on 9-12-22 under ROA No. 89, alleges, "As a proximate result of the publication and republication of these defamatory statements by Defendants, and each of them, Plaintiff has suffered injury to her personal, business and professional reputation including suffering embarrassment, humiliation, severe emotional distress, shunning, anguish, fear, loss of employment, and employability, and significant economic loss in the form of lost wages and future earnings, all to Plaintiff's economic, emotional, and general damage in an amount according to proof." (FAC, ¶ 88.) Thus, the FAC places Plaintiffs lost wages and future earnings at issue. *Kao v. University of San Francisco* (2014) 229 Cal.App.4th 437, 454 (*Kao*), states, " '[B]efore projected earnings from other employment opportunities not sought or

accepted by the discharged employee can be applied in mitigation, the employer must show that the other employment was comparable, or substantially similar, to that of which the employee has been deprived. . . .' [Citation.]"

The court finds that Plaintiff has a legally protected privacy interest in Plaintiff's employment records under *San Diego*. Defendants have raised an important countervailing interest in that the records are necessary for the ascertainment of truth in legal proceedings as to damage pertaining to lost past and future earnings. (Opposition; 3:17-5:8.) In conducting the balancing under *Williams*, the court finds that the countervailing interest as to CACI No. 3963 does not outweigh Plaintiff's privacy interest. Under CACI No. 3963 and *Kao*, Defendant has not provided evidence of other employment that Plaintiff did not seek or rejected. (Storti Decl.) Without this evidence, the requests are overbroad because they will disclose information beyond what is necessary to defend against Plaintiff's claims for lost past and future earnings. Therefore, the court **DENIES** the Motion to the extent it is based on CACI No. 3963.

CACI Nos. 3961 and 3962, however, describe the calculations used to determine damages based on mitigation. In conducting the balancing under *Williams*, the FAC specifically requests damages for lost past and future and earnings. CACI Nos. 3961 and 3962 describe the calculations used to determine damages based on mitigation. Based on the balancing under *Williams*, the court finds that the requests for records pertaining to ". . . wage/payroll, to include W-2s, W-4s & 1099s, salary increase/decrease records . . ." are records relevant to Plaintiff's claims for lost past and future earnings. (Phillips Decl., ¶ 3 and Exhibits A, B, C, D, E, and F.) Therefore, the court finds that Defendants' countervailing interest outweighs Plaintiff's right to privacy as to these records because the FAC places Plaintiff's lost past and future earnings at issue.

As to the remaining requests, the court finds that Plaintiff's privacy interest outweighs the countervailing interest raised by Defendant because these requests are overbroad. The remaining requests are overbroad because they will disclose Plaintiff's confidential employment and personnel information beyond what is necessary to defend against Plaintiff's claim for damages based on lost past and future earnings.

Based on the above, the court **DENIES** Plaintiff's (Ashley Raminfard) Motion to Quash Subpoenas Seeking Plaintiff's Employment Records, or, in the Alternative, for a

		Protective Order, filed on 4-14-23 under ROA No. 173, to the extent it seeks to quash the request pertaining to ". . . wage/payroll, to include W-2s, W-4s & 1099s, salary increase/decrease records . . ." as to each of the Deponents. (Phillips Decl., ¶ 3 and Exhibits A, B, C, D, E, and F.) The court **GRANTS** the Motion as to the remaining requested records. The court **DENIES** Plaintiff's request for a monetary sanction because Plaintiff failed to request a monetary sanction in the Notice of Motion. The court generally cannot grant different relief, or relief on different grounds, than stated in the notice of motion. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1124-1125.) Further, the court finds that Plaintiff was substantially justified in bringing the Motion, and Defendant was substantially justified in opposing the Motion. (Code Civ. Proc., § 1987.2, subd. (a).) Plaintiff is to give notice. **<u>Motion No. 3:</u>** **Plaintiff's (Ashley Raminfard) Motion to Quash Subpoena Seeking Plaintiff's Employment Records, or, in the Alternative, for a Protective Order (Motion), filed on 5-19-23 under ROA No. 180, is GRANTED in part and DENIED in part.** Initially, the court notes that this Motion seeks to quash a Deposition Subpoena directed to the Orange County Registrar of Voters issued on 5-4-23. (Motion; 3:3-18.) The declaration in support of the Motion refers to this Deposition Subpoena as Exhibit A, but does not attach the Deposition Subpoena. (Phillips Decl., ¶ 3(a).) The Motion describes that the Deposition Subpoena requests the same records as the records the court ruled upon in deciding Motion No. 2. Defendant's (North Orange County Community College District) Opposition to Motion to Quash Subpoenas Seeking Plaintiff's Employment Records (Opposition), filed on 9-12-23 under ROA No. 229, states, "Plaintiff is seeking lost past and future wages. This, of course, triggers plaintiff's duty to mitigate her damages." (Opposition; 3:22-23.) Although the court does not have a copy of the Deposition Subpoena, the court has already ruled upon a Deposition Subpoena issued to the Orange County Registrar of Voters on 3-20-23 as part of its ruling on Motion No. 2. Since the Deposition Subpoena at issue in this Motion appears to seek the same records, the court **GRANTS** this Motion in part and **DENIES** this Motion in part for the same reasons as stated for Motion No. 2.

		Based on the above, the court Based on the above, the court **DENIES** Plaintiff's (Ashley Raminfard) Motion to Quash Subpoena Seeking Plaintiff's Employment Records, or, in the Alternative, for a Protective Order, filed on 5-19-23 under ROA No. 180, to the extent it seeks to quash the request pertaining to ". . . wage/payroll, to include W-2s, W-4s & 1099s, salary increase/decrease records . . ." as to the Deponent. The court **GRANTS** the Motion as to the remaining requested records. The court **DENIES** Plaintiff's request for a monetary sanction because Plaintiff failed to request a monetary sanction in the Notice of Motion. The court generally cannot grant different relief, or relief on different grounds, than stated in the notice of motion. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1124-1125.) Further, the court finds that Plaintiff was substantially justified in bringing the Motion, and Defendant was substantially justified in opposing the Motion. (Code Civ. Proc., § 1987.2, subd. (a).) Plaintiff is to give notice.
8	30-2020-01170426 Babler v. Tuttle Click, Inc.	Based on Defendant's (Tuttle-Click, Inc.) Notice of Withdrawal (filed on 9-18-23 under ROA No. 195), Defendant's Motion to Quash Plaintiff Brian Babler's Notice of Issuance of Deposition Subpoena (filed on 5-5-23 under ROA No. 177, and scheduled for hearing on 9-26-23) is **OFF CALENDAR**.
9	30-2022-01251752 Ocloo v. Nottinson	Based on the Request for Dismissal filed on 9-13-23 under ROA No. 129, Moving Counsel's Motion to Be Relieved as Counsel (filed on 7-28-23 under ROA No. 123, and scheduled for hearing on 9-26-23) is **OFF CALENDAR**.
10	30-2019-01078334 Capo 2 Poche, LLC v. Kuntz	Based on the Joint Stipulation electronically received on9-21-23 under ROA No. 291, Plaintiff's (Capo 2 Poche, LLC) Motion to Compel Defendant Daniel Kuntz to Produce Documents (filed on 5-4-23 under ROA No. 235, and scheduled for hearing on 9-26-23) is **OFF CALENDAR**.
11	30-2021-01202952 Paranjpe v. Almeria	As to Defendants' (Ralph Almeria and Golden Systems, LLC) unopposed Motion to Compel New Day Psychotherapy Group to Comply with Defendants' Subpoena for Plaintiff Parag Paranjpe's Mental Records (Motion), filed on 5-19-23 under ROA No. 57, the court requests Defendants to address *Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1014.

12	30-2023-01308138 Blanco v. Nissan North America, Inc.	Defendant's (Nissan North America, Inc.) unopposed Motion to Compel Arbitration and Stay Proceedings (Motion), filed on 5-3-23 under ROA No. 17, is **DENIED**. Code of Civil Procedure section 1281.2 states in part, "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] (a) The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement. . . ." *Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219, provides, "In *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 58 Cal.Rptr.2d 875, 926 P.2d 1061 (*Rosenthal*), our Supreme Court set forth the procedure to be followed when a petitioner seeks to compel arbitration: '[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement—either fraud in the execution voiding the agreement, or a statutory defense of waiver or revocation [citation]—that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense.' [Citation.]" (Footnote 8 omitted.) *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060 (*Espejo*), provides, "In context, the brief discussion of *Condee* by the court in *Toal* regarding a petitioner's ultimate burden has no bearing on the question before us—whether defendants may meet their *initial* burden to show an agreement to arbitrate by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature. We conclude they may, in compliance with the requirements of section 1281.2 and *California Rules of Court, rule 3.1330*." (Italics in *Espejo*.) *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 (*Gamboa*), explains, "First, the moving party bears the burden of producing 'prima facie evidence of a written agreement to arbitrate the controversy.' [Citation.] The moving party 'can meet its

		initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature.' [Citation.] Alternatively, the moving party can meet its burden by setting forth the agreement's provisions in the motion. [Citations.] For this step, 'it is not necessary to follow the normal procedures of document authentication.' [Citation.] If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion. [¶] If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. [Citation.] The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. [Citations.] [¶] If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party. [Citation.]" **Equitable Estoppel:** Relying on equitable estoppel, the Motion states, "California Law allows nonsignatories, including third-party auto manufacturers, to enforce the arbitration provisions under the doctrine of equitable estoppel where the subject claims arise out of, and are intertwined with the obligations of the sales contract." (Motion; 14:20-22.) Here, Defendant has not met its initial burden of showing the existence of written arbitration agreement. The declaration in support of the Motion states, "Attached as **Exhibit A** is a true and correct copy of what I am informed and believe is the Retail Installment Sale Contract . . . for the purchase of the used 2020 Nissan Rogue . . . ." (Antonyan Decl., ¶ 6 and Exhibit A; Emphasis in declaration.) *Kendall v. Barker* (1988) 197 Cal.App.3d 619, 624, states, "A statement made without personal knowledge and solely upon information and belief is hearsay and no proof of the facts contained therein. [Citations.] Moreover, affidavits or declarations setting forth only conclusions, opinions or ultimate facts are insufficient. [Citations.] In other words, the declaration offered by respondent in support of relief was not competent to prove anything."

		Since the declaration relies on information and belief as to Exhibit A, the declaration offered by Defendant is not competent demonstrate the admissibility of Exhibit A. Thus, Defendant has not carried its initial burden of demonstrating the existence of a written arbitration agreement between Plaintiff and Defendant. Further, as to the arbitration provision that Defendant asserts is in the Retail Installment Sale Contract (RISC), the declaration in support of the Motion states, "Attached as **Exhibit B** is a true and correct copy of the exemplao of a Retail Installment Sale Contract . . . that contains the front and back portions of a customary Sales Contract, like the one executed by Plaintiff. . . ." (Antonyan Decl., ¶ 9 and Exhibit B; Emphasis in declaration.) This evidence as to the arbitration provision contained in the RISC is insufficient because Defendant has not provided evidence of the actual RISC signed by Plaintiff that contained the arbitration provision. Therefore, the court **DENIES** the Motion because Defendant has not presented competent evidence of an arbitration agreement between Plaintiff (Ambariana Blanco) and Defendant. The court finds that Defendant has not demonstrated by a preponderance of the evidence the existence of an arbitration agreement between Plaintiff and Defendant. Assuming Exhibits A and B are admissible, the court finds that Defendant cannot enforce the arbitration provision as a nonsignatory under an equitable estoppel or third-party beneficiary theory. *Felisilda v. FCA US LLC* (2020) 53 Cal.App.5th 486, 495 (*Felisilda*), states, "As a general rule, only a party to an arbitration agreement may enforce the agreement. [Citation.]" *Westra v. Marcus & Millichap Real Estate Investment Brokerage Co., Inc.* (2005) 129 Cal.App.4th 759, 763 (*Westra*), provides, " ' "The strong public policy in favor of arbitration does not extend to those who are not parties to an arbitration agreement, and a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration. [Citation.]" ' [Citations.]" *Correia v. NB Baker Electric, Inc.* (2019) 32 Cal.App.5th 602, 622 (*Correia*), explains, "Under state and federal law, an arbitration agreement applies only to the parties who agreed to its terms and a party cannot be compelled to arbitrate a dispute that it has not elected to submit to arbitration. [Citation.]" *Jones v. Jacobson* (2011) 195 Cal.App.4th 1, 15 (*Jones*), states, "We conclude that in such instances, the nonsignatory bears the burden to establish he or she is a *party* to the arbitration agreement/provision covering the dispute." (Italics in

		Jones.) "As is now obvious, with *limited* exceptions only parties to an arbitration agreement can enforce it or be required to arbitrate. [Citation] . . . [¶] '. . . Even the strong public policy in favor or arbitration does not extend to those who are not parties to an arbitration agreement or who have not authorized anyone to act for them in executing such agreement.' . . . [¶] 'Exceptions in which an arbitration agreement may be enforced by or against nonsignatories include where a nonsignatory is a third party beneficiary of the agreement [citation] and when a nonsignatory and one of the parties to the agreement have a preexisting agency relationship that makes it equitable to impose the duty to arbitrate on either of them. [Citations.]' [Citation.] (*Id.*, at pp. 17-18.) The RISC provides the following terms regarding arbitration: "1. EITHER YOU OR WE MAY CHOOSE TO HAVE ANY DISPUTE BETWEEN US DECIDED BY ARBITRATION AND NOT IN COURT OR BY JURY TRIAL. [¶] 2. IF A DISPUTE IS ARBITRATED, YOU WILL GIVE UP YOUR RIGHT TO PARTICIPATE AS A CLASS REPRESENTATIVE OR CLASS MEMBER ON ANY CLASS CLAIM YOU MAY HAVE AGAINST US INCLUDING ANY RIGHT TO CLASS ARBITRATION OR ANY CONSOLIDATION OF INDIVIDUAL ARBITRATIONS. [¶] 3. DISCOVERY AND RIGHTS TO APPEAL IN ARBITRATION ARE GENERALLY MORE LIMITED THAN IN A LAWSUIT, AND OTHER RIGHTS THAT YOU AND WE WOULD HAVE IN COURT MAY NOT BE AVAILABLE IN ARBITRATION." (Antonyan Decl. ¶ 9 and Exhibit B.) The RISC further states, "Any claim or dispute, whether in contract, tort, statute or otherwise . . . between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral binding arbitration and not by a court action. . . ." (Antonyan Decl. ¶ 9 and Exhibit B.) The RISC specifically defines "You" as the "Buyer (and Co-Buyer, if any)" (Plaintiffs) and "we" or "us" as the "Seller" (Dealer). (Antonyan Decl. ¶ 6 and Exhibit A.) Defendant is not a signatory to the RISC. (Antonyan Decl. ¶ 6 and Exhibit A.) In *Felisilda*, ". . . the Felisildas brought an action against Elk Grove Dodge and the manufacturer, FCA US LLC (FCA) for <u>violation of the Song-Beverly Consumer Warranty Act (Song-Beverly Act) (Civ. Code, § 1790 et seq.). Relying on the retail installment sales contract (sales contract) signed by the Felisildas, Elk Grove Dodge moved to compel arbitration</u>. FCA filed a notice of nonopposition to the motion to compel. The trial court ordered the Felisildas to arbitrate their claim against both

		Elk Grove Dodge and FCA. In response, the Felisildas dismissed Elk Grove Dodge. The matter was submitted to arbitration, and the arbitrator found in favor of FCA. The trial court confirmed the arbitrator's decision. From the resulting judgment, the Felisildas appeal." (*Felisilda, supra*, at p. 489; Footnote 1 omitted.) "In October 2015, Elk Grove Dodge moved to compel arbitration of the Felisildas' claim. In so moving, Elk Grove Dodge argued the entire matter should be ordered to arbitration – including FCA, even though FCA was not a signatory to the sales contract. FCA filed a 'notice of non-opposition' to Elk Grove Dodge. FCA did not advance any argument in support of arbitration." (*Felisilda, supra*, 53 Cal.App.5th at p. 491.) "As a general rule, only a party to an arbitration agreement may enforce the agreement. [Citation.] However, there are several exceptions that allow a nonsignatory to invoke an agreement to arbitrate. [Citation.] The doctrine of equitable estoppel is one of the exceptions. [Citation.] [¶] Under the doctrine of equitable estoppel, 'as applied in "both federal and California decisional authority, a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claims when the causes of action against the nonsignatory are 'intimately founded in and intertwined' with the underlying contract obligations." (*Boucher [v. Alliance Title Co, Inc.* (2005)] 127 Cal.App.4th [262,] 271 [25 Cal.Rptr.3d 440] [(*Boucher*)]; *Goldman [v. KPMG, LLP* (2009)] 173 Cal.App.4th [209,] 217-218 [92 Cal.Rptr.3d 534] [(*Goldman*)].) "By relying on contract terms in a claim against a nonsignatory defendant, even if not exclusively, a plaintiff may be equitably estopped from repudiating the arbitration clause contained in that agreement." (Boucher, supra, 127 Cal.App.4th at p. 272 [25 Cal.Rptr.3d 440]; *Goldman, supra*, 173 Cal.App.4th at p. 220 [92 Cal.Rptr.3d 534].)' [Citation.] [¶] 'Where the equitable estoppel doctrine applies, the nonsignatory has a right to enforce the arbitration agreement.' [Citation.] ' "The fundamental point" is that a party is "not entitled to make use of [a contract containing an arbitration clause] as long as it worked to [his or] her advantage, then attempt to avoid its application in defining the forum in which [his or] her dispute . . . should be resolved." ' [Citations.] 'In any case applying equitable estoppel to compel arbitration despite the lack of an agreement to arbitrate, a nonsignatory may compel arbitration only when the claims against the nonsignatory are founded in and inextricably bound up with the obligations imposed by the agreement containing the arbitration clause.' [Citation. In determining whether the plaintiffs' claim is founded on or intimately connected with the sales

contract, we examine the facts of the operative complaint. [Citation.]” (*Id.*, at pp. 495-496; Italics in *Felisilda*.)

Glassburg v. Ford Motor Co., (C.D. Cal. Nov. 2, 2021) 2021 WL 5086358, at page 3 (*Glassburg*), states, “Ford argues that *Felisilda v. FCA US LLC*, 53 Cal. App. 5th 486 (2020) compels a different result, but Ford is mistaken. In *Felisilda*, the consumer had originally brought their claim against both the dealer and the manufacturer. [Citation.] This difference is key. The existence of a claim against the dealer makes *Felisilda* inapposite because the claim against the dealer brought the Felisildas' claim within the scope of the arbitration agreement, that is, within the class of claims described by the arbitration agreement as arbitrable. [Citation.] (‘[T]he arbitration provision in this case provides for arbitration of *disputes that include third parties* so long as the dispute pertains to the condition of the vehicle.” (emphasis added)). Because the Felisildas initially brought their claim against both the dealer and the manufacturer, their dispute was one that “include[d] third parties.’ [Citation.] The Court based its conclusion that equitable estoppel applied primarily on the fact that the Felisildas' claim against the manufacturer fell within the scope of the operative arbitration clause. [Citation.]”

Ngo v. BMW of North America, LLC (9th Cir. 2022) 23 F.4th 942, 950 (*Ngo*), “BMW alternatively argues that it need not meet the Kramer standard because equitable estoppel under California law was broadened by a recent decision: *Felisilda v. FCA US LLC*, 53 Cal. App. 5th 486, 266 Cal.Rptr.3d 640 (2020). We disagree. [¶] The plaintiffs in Felisilda purchased a used 2011 Dodge Grand Caravan from the Elk Grove Dodge dealership and signed a purchase agreement containing an arbitration provision that was virtually identical to the one Ngo signed. [Citation.] After discovering ‘serious defects’ with the car, the Felisildas sued both the dealership and the manufacturer. [Citation.] The dealership moved to compel arbitration. [Citation.] After the manufacturer filed a notice of non-opposition, the trial court compelled arbitration. [Citation.] The Felisildas then dismissed the dealership and the district court ordered it to arbitrate with the manufacturer alone. [Citation.] The California Court of Appeal affirmed. [Citation.] [¶] It makes a critical difference that the Felisildas, unlike Ngo, sued the dealership in addition to the manufacturer. In *Felisilda*, it was the dealership—a signatory to the purchase agreement—that moved to compel arbitration rather than the non-signatory manufacturer. [Citation.] Furthermore, the Felisildas dismissed the dealership only after the court granted the motion to compel arbitration. Accordingly, Felisilda does not address the situation we are confronted

		with here, where the non-signatory manufacturer attempted to compel arbitration on its own. We therefore decline to affirm on the ground of equitable estoppel.” In *Ngo*, “Ngo’s complaint named only BMW as a defendant.” (*Id*., at p. 945.) *Alan v. Superior Court* (2003) 111 Cal.App.4th 217, 229, provides, “And, of course, the decisions of federal district and circuit courts, although entitled to great weight, are not binding on state courts even as to issues of federal law. [Citation.]” *Ford Motor Warranty Cases v. Ford Motor Company* (*Ochoa*) 89 Cal.App.5th 1324 (*Ochoa*) distinguished *Felisilda*. *Ochoa* states, “That the *Felisilda* plaintiffs and the *dealer* agreed in their sale contract to arbitrate disputes between them about the condition of the vehicle does not equitably estop the plaintiffs from asserting *FCA* has no right to demand arbitration. Equitable estoppel would apply if the plaintiffs had sued FCA based on the terms of the sale contract yet denied FCA could enforce the arbitration clause in that contract. [Citation.] That is not what the plaintiffs did in *Felisilda*. [¶] The plaintiffs’ breach of warranty claims against FCA in *Felisilda* were not based on their sale contracts with the dealers. We disagree with *Felisilda* that ‘the sales contract was the source of [FCA's] warranties at the heart of this case.’ [Citation.] As we discuss further below, manufacturer vehicle warranties that accompany the sale of motor vehicles without regard to the terms of the sale contract between the purchaser and the dealer are independent of the sale contract.” (*Id*., at p. 1334. *Ochoa* further states, “Again, the ‘ “ ‘fundamental point’ ” ’ of using equitable estoppel to compel arbitration is to prevent a party from taking advantage of a contract's substantive terms while avoiding those terms requiring arbitration. [Citation.] Plaintiffs’ claims in no way rely on the sale contracts. Equitable estoppel does not apply.” (*Id*., at p. 1336.) Defendant’s Reply to Plaintiffs’ Opposition to Its Motion to Compel Arbitration and Stay Action (Reply), filed on 7-11-23 under ROA No. 54, states, “As the *Ochoa* case has been appealed it may only be cited for persuasive and not precedential value.” (Reply; 1:14-15.) California Rules of Court, rule 8.1115(e)(1), states, “Pending review and filing of the Supreme Court's opinion, unless otherwise ordered by the Supreme Court under (3), a published opinion of a Court of Appeal in the matter has no binding or precedential effect, and may be cited for potentially persuasive value only. Any citation to the Court of Appeal opinion must also note the grant of review and any subsequent action by the Supreme Court.”

		To the extent that *Ochoa* is in conflict with *Felisilda*, the court finds *Ochoa's* reasoning more persuasive. Similar to *Ochoa*, Plaintiff bases the causes of action on Defendant's vehicle warranties. The Complaint, filed on 2-16-23 under ROA No. 2, alleges causes of action for breach of express warranty pursuant to Civil Code section 1793.2, breach of implied warranty of merchantability, and a violation Civil Code section 1793.2, subdivision (b). (Complaint.) Plaintiff does not base the causes of action on the terms of the sales contract between Plaintiff and Dealer. Therefore, the court finds that equitable estoppel does not apply to allow Defendant, as a non-signatory to the RISC, to enforce the arbitration provision in the RISC. **Third Party Beneficiary:** *Ochoa* provides, "To show the contracting parties intended to benefit it, a third party must show that, under the express terms of the contract at issue and any other relevant circumstances under which the contract was made, (1) 'the third party would in fact benefit from the contract'; (2) 'a motivating purpose of the contracting parties was to provide a benefit to the third party'; and (3) permitting the third party to enforce the contract 'is consistent with the objectives of the contract and the reasonable expectations of the contracting parties.' [Citation.]" (*Id*., at p. 1337.) *Ochoa* explains, "We agree with *Ngo* that the sale contracts reflect no intention to benefit a vehicle manufacturer under *Goonewardene*. First, nothing in the sale contracts or their arbitration provision offers any direct 'benefit' to FMC [citation]. FMC's claim that it '*would* benefit from utilizing arbitration as an efficient means of dispute resolution' (italics added) *if* treated as a third party beneficiary begs the question: *does* the provision directly benefit FMC? The answer is patently 'no.' Its direct benefits are expressly limited to those persons who might rely on it to avoid proceeding in court—the purchaser, the dealer, and the dealer's employees, agents, successors or assigns. FMC is none of these. [¶] Second, there is no indication that a benefit to FMC was the signatories' 'motivating purpose' [citation] in contracting for the sale and purchase of a Ford vehicle. The manifest intent of the parties was to buy, sell and finance a car, and to allow either the purchaser or the dealer to compel arbitration of the specified categories of disputes between them, or between the purchaser and any of the dealer's 'employees, agents, successors or assigns.' [Citation.]" (*Id*., at pp. 1338-1339.) "Finally, allowing FMC to enforce the arbitration provision as a third

		party beneficiary would be inconsistent with the 'reasonable expectations of the contracting parties' [citation] where they twice specifically vested the right of enforcement in the purchaser and the dealer only." (*Id*., at p. 1340.) Under *Ochoa*, Defendant is not a third-party beneficiary of the RISC between Plaintiffs and Dealer, and Defendant cannot enforce the arbitration provision in the RISC as a third-party beneficiary. Based on the above, the court **DENIES** Defendant's (Nissan North America, Inc.) unopposed Motion to Compel Arbitration and Stay Proceedings filed on 5-3-23 under ROA No. 17. Court Clerk is to give notice.
13	30-2022-01254056 Sanders v. Logan	Plaintiff's (Nicholas A. Sanders, Trustee of the Joseph L. and Kathleen H. Sanders Family Trust Dated January 28, 1986) Motion to Compel Further Responses to Request for Production, Set One (Motion), filed 2-21-23 under ROA No. 76, is **CONTINUED** to 11-7-23 at 9:00 a.m. in Department C32. Plaintiff moves to compel a further response to "Request for Production of Documents to Ethan Logan, Set One" directed to Defendant (Ethan Logan). This Request for Production contains 100 requests. (Berger Decl., ¶ 2 and Exhibit A.) A motion to compel further responses ". . .shall be accompanied by a meet and confer declaration." (Code Civ. Proc., § 2031.310, subd. (b)(2).) The declaration must state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented in the motion. (Code Civ. Proc., § 2016.040 *Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1293 (*Clement*), states, " 'The Discovery Act requires that, prior to the initiation of a motion to compel, the moving party declare that he or she has made a serious attempt to obtain "an informal resolution of each issue." [Citations.] This rule is designed "to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order. . . ." [Citation.] This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes. [Citations.]' [Citation.]" "Nevertheless, we feel compelled to observe that resort to the courts easily could have been avoided here had *both* parties actually taken to heart Justice Stone's admonitions in *Townsend* that 'the statute requires that there be a serious effort at negotiation and

		informal resolution.' [Citation.] Perhaps after 11 years it is necessary to remind trial counsel and the bar once again that '[a]rgument is not the same as informal negotiation' [citation]; that attempting informal resolution means more than the mere attempt by the discovery proponent 'to persuade the objector of the error of his ways' [citation]; and that 'a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing]counsel. . . . Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.' [Citation.]" (*Id*., at p. 1294.) On 9-18-23 under ROA No. 132, the parties filed a Joint Statement stating that they engaged in a telephonic meet and confer conference on 8-14-23 and resolved the motion as to a number of requests, while a number of requests remained at issue. The Joint Statement also states, "Responding party indicated in its opposition to the motion that it will supplement its response to the following categories, which is a subset of those listed above within this Section 3: 19, 20, 22, 23, 36, 57-59, 66-68, 75-81, 82, 87, 96. Responding party remains so willing." (Joint Statement; 2:8-10.) However, in reviewing Defendant's Separate Statement (DSS), filed on 7-10-23 under ROA No. 114, it is not clear whether Defendant is willing to respond to the requests listed in the Joint Statement or to the requests that Defendant represented it would comply with in its initial responses. For example, Defendant's response to Request No. 45 represents that Defendant would produce documents subject to a protective order (DSS; 45:24-45:1.) The Joint Statement does not list Request No. 45 as a Request that Defendant is willing to supplement. Approximately 60 requests remain at issue which is a significant number of unresolved issues. Finally, the Joint Statement does not give explain the issues that separate the parties from resolving the remaining requests at issue. Therefore, the court finds that further meet and confer efforts are necessary to attempt informal resolution of the remaining discovery requests at issue. The court requests the lead trial attorneys to appear in court at the hearing on 9-26-23 to further meet and confer regarding the discovery requests still at issue. At the hearing on 9-26-23, the court will set a date for the filing of a supplemental Joint Statement regarding the discovery requests that are still at issue after the meet and confer conference.
14	30-2022-01254026	Plaintiff's (Primary Care Associates of California, Inc.) Motion to Compel the Depositions of Defendant Alexis

	Primary Care Associates of California, Inc. v. Mejia	Mejia and the Person Most Knowledgeable of Defendant A&E Solutions (PMK) and to Continue the Trial Date (Motion), filed on 4-5-23 under ROA No 62, is **GRANTED** as to the deposition of Defendant—Alexis Mejia, **DENIED** as to the PMK, and **MOOT** as to the request for a trial continuance. Code of Civil Procedure section 2025.450 states in part, "(a) If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice. [¶] (b) A motion under subdivision (a) shall comply with both of the following: [¶] (1) The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice. [¶] (2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance. . . ." On 7-12-22, Plaintiff Notice of Deposition the depositions of Defendant—Alexis Mejia and the PMK with Notices of Deposition scheduled for 8-23-22. (Farivar Decl., ¶ 5 and Exhibit A.) Both deponents failed to appear. (Farivar Decl., ¶ 6.) Plaintiff's counsel made attempts to meet and confer with counsel for Defendant—Alexis Mejia to schedule the deposition of Defendant—Alexis Mejia, but Defendant Mejia has not appeared for deposition. (Farivar Decl., ¶¶ 10-21.) Plaintiff's counsel also requested a date for the deposition of the PMK. (Farivar Decl., ¶ 10 and Exhibit D.) Defendants have failed to provide available dates for their depositions. (Farivar Decl., ¶ 22.) The Motion complies with Code of Civil Procedure section 2025.450. The Motion is unopposed. Therefore, the court **GRANTS** Plaintiff's (Primary Care Associates of California, Inc.) Motion to Compel the Depositions of Defendant Alexis Mejia and the Person Most Knowledgeable of

		Defendant A&E Solutions (PMK) filed on 4-5-23 under ROA No 62. The depositions of Defendant—Alexis Mejia and the PMK shall occur within 30 days from the date of service of the notice of the court's ruling at a location and time agreed upon by the parties. The court **DENIES** the Motion to the extent it requests a continuance because the trial was continued by Stipulation and Order filed on 6-9-23 under ROA No. 71. The court awards a monetary sanction in the amount of against Defendants, jointly and severally in the amount of $1,800.00. (Code Civ. Proc. § 2025.450(g)(1); Cal. Rules of Court, rule 3.1348; Farivar Decl., ¶ 23.) The Motion is **MOOT** as to the request to continue trial because trial was continued pursuant to stipulation on 6-9-23. Plaintiff is to give notice.
15	30-2019-01076330 Sun v. Wu	Plaintiffs' (Bin Sun, Shiming Liang Pang and Da Jen Gao) Motion to Allow Remote Testimony of Witnesses, filed on 5-17-23, under ROA No. 191, is **CONTINUED** to 10-24-23 at 9:00 a.m. in Department C32. Defendants' (Feiwen Wu and Linchun Zhao, individually and as trustees of the Zhao Revocable Trust) Opposition to Plaintiffs' Motion to Allow Remote Testimony of Witnesses (Opposition), filed on 9-15-23 under ROA No. 282, was not served on Plaintiffs 9 court days prior to the hearing and was not served by means reasonably calculated to ensure delivery by no later than the close of the next business day as required by Code of Civil Procedure section 1005, subdivisions (b) and (c). Specifically, although Plaintiff Bin Sun was served by both email and mail, Plaintiffs Da Jen Gao and Shiming Liang Pang were served by mail only to addresses in China. Further, given the untimely service of the Opposition and lack of a Reply, it is unclear if the Plaintiffs, who are currently unrepresented, are aware of the hearing on this Motion on 9-26-23. The court granted the Motion to be Relieved by Plaintiffs' prior attorney on 8-15-23. (8-15-23 Minute Order.) The Order granted the Motion to be Relieved did not notify Plaintiffs that the next scheduled hearing in the action was on 9-26-23. (Order filed on 8-15-23 under ROA No. 276.) Therefore, the court **CONTINUES** the hearing on this Motion to 10-24-23 at 9:00 a.m. in Department C32. Defendants are to give notice.
16	30-2019-01064196 Alpay v. Alvord	Plaintiffs' (John Alpay, Rochelle Alpay, Autumn Alpay, Saige Alpay, and Logan Alpay) Motion to Tax Costs

		(Motion), filed on 5-5-23 under ROA No. 575, is **GRANTED** in part and **DENIED** in part. Code of Civil Procedure section 1032, subdivision (a)(4) states, " 'Prevailing party' includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the 'prevailing party' shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034." Code of Civil Procedure section 1032, subdivision (b), provides, "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." *Ladas v. California State Automobile Association* (1993) 19 Cal.App.4th 761, 773-774 (*Ladas*), states, " '[S]ection 1033.5, enacted in 1986, codified existing case law and set forth the items of costs which may or may not be recoverable in a civil action. [Citation.]' [Citation.] An item not specifically allowable under subdivision (a) nor prohibited under subdivision (b) may nevertheless be recoverable in the discretion of the court if 'reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.' [Citation.] [¶] If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. [Citations.] Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. [Citations.] *However, because the right to costs is governed strictly by statute [citation] a court has no discretion to award costs not statutorily authorized.* [Citations.]" (Italics in *Ladas*.) The Motion seeks to tax the following items contained in Defendants' (Deborah Alvord Dorris and Gary Dorris) Memorandum of Costs filed on 4-18-23 under ROA No. 573: Item 4—Deposition Costs; Item 11—Court Reporter Fees; Item 12—Models, Enlargements, Photocopies of Exhibits; and Item 16—Other. The Motion does not

		dispute that Defendants were the prevailing parties in this action within the meaning of Code of Civil Procedure section 1032, subdivision (a)(4). **Item 4—Deposition Costs:** Code of Civil Procedure section 1033.5, subdivision (a)(3) allows the recovery of costs for: "Taking, video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed." Plaintiffs seek to tax costs for ". . . the depositions of (1) Erin Beyer - $1,090.00; (2) Linda Escandon - $699.00; and (3) John Alpay - $1,498.50." (Motion; 4:28-5:1.) The Motion states, ". . . only John Alpay testified at trial. Indeed, the depositions of Erin Beyer, Linda Escandon, and a significant portion of John Alpay's deposition was their [*sic*] necessary to the conduct of the litigation because it related solely to the CC&R Claims." (Motion; 5:1-4.) Defendants have shown the depositions were necessary. Specifically, Defendants have shown that Erin Beyer was Plaintiffs designated retained expert on property damages, and therefore it was necessary for Defendants to depose Erin Beyer. (Russo Decl., ¶¶ 2, 5, and Exhibit 1.) Defendants have also shown that the deposition of Linda Escandon was necessary because Linda Escandon was a a named Plaintiff who was not dismissed from the case until 2-24-23. (Request for Dismissal filed on 2-24-23 under ROA No. 472.) Linda Escandon was suing Defendants for damages as to the fourth, sixth, and seventh causes of action contained in Plaintiffs' Second Amended Complaint (SAC) filed on 4-1-21 under ROA No. 205.) plaintiff who, until the eve of trial, was suing Defendants for damages under the Fourth, Sixth and Seventh Causes of Action. Finally, Defendants have shown that John Alpay's deposition was necessary because Mr. Alpay was a named Plaintiff on all of the causes of action in the SAC. Therefore, the court **DENIES** the Motion as to Item 4. **Item 11—Court Reporter Fees:** Code of Civil Procedure section 1033.5, subdivision (a)(9) allows the recovery of costs for: "Transcripts of court proceedings ordered by the court." Section 1033.5, subdivision (b), provides, "The following items are not

allowable as costs, except when expressly authorized by law: . . .[¶] (5) "Transcripts of court proceedings not ordered by the court."

Defendants' Opposition to Motion to Tax Costs (Opposition), filed on 8-31-23 under ROA No. 591, concedes ". . . that the Court did not order that the parties provide a court reporter. . . ." (Opposition; 6:1-2.) Therefore, the court **GRANTS** the Motion as to Item 11.

Item 12—Models Enlargements, Photocopies of Exhibits:

Code of Civil Procedure section 1033.5, subdivision (a)(13), allows the recovery of costs for: "Models, the enlargements of exhibits and photocopies of exhibits . . . if they were reasonably helpful to aid the trier of fact."

The Motion states, "Opening and closing graphics are not 'models and enlargements of exhibits.' Without additional information from Defendants, Plaintiffs operate under the assumption that these costs are not allowed . . . ." (Motion; 5:21-22.)

Defendants have shown that the charge was incurred by Defendants to photocopy the Defendants' Trial Exhibits for the trial exhibit binders. (Russo Decl., ¶ 13.) These photocopies were reasonably helpful to aid the trier of fact. Therefore, the court **DENIES** the Motion as to Item 12.

Item 16—Other:

Code of Civil Procedure section 1033.5, subdivision (a)(16), allows the recovery of costs for: " Any other item that is required to be awarded to the prevailing party pursuant to statute as an incident to prevailing in the action at trial or on appeal." Code of Civil Procedure section 1033.5, subdivision (c), states, "(c) An award of costs shall be subject to the following: [¶] (1) Costs are allowable if incurred, whether or not paid. [¶] (2) Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation. [¶] (3) Allowable costs shall be reasonable in amount. [¶] (4) Items not mentioned in this section and items assessed upon application may be allowed or denied in the court's discretion."

The declaration in support of the Opposition states, "The $470 for CourtCall is for hearings on September 22, 2020, October 13, 2020, March 4, 2021 and June 8, 2021. The Court had not yet transitioned to its free video appearance system. These costs are not expressly allowable under

		CCP Section 1033.5, but they are reasonable. The costs are in the amount that everyone was paying for CourtCall at that time, and Mr. Pitet also appeared by CourtCall for most of our appearances in this case." (Russo Decl., ¶ 14.) Although Defendants have sufficiently demonstrated that these costs are reasonable in amount, Defendants have not shown that these costs were reasonably necessary to the conduct of the litigation. Rather, these costs are merely convenient and beneficial to the preparation of the litigation. For example, the declaration in support of the Opposition does not indicate that the costs incurred were for law and motion hearings related to the litigation. Therefore, the court **GRANTS** the Motion as to Item 16. Based on the above, the court **GRANTS** Plaintiffs' (John Alpay, Rochelle Alpay, Autumn Alpay, Saige Alpay, and Logan Alpay) Motion to Tax Costs, filed on 5-5-23 under ROA No. 575, as to Items 11 and 16. The court **DENIES** the Motion as to Item Nos. 4 and 12. Plaintiffs are to give notice.
17	30-2022-01284597 KTB Sunkist LLC v. Talt 10:00 a.m.	Status Conference.
18	30-2021-01229735 Ruiz v. Duran 11:00 a.m.	Case Management Conference.
19	30-2022-01261142 Daverso v. Buccola 11:00 a.m.	Case Management Conference.
20	30-2020-01152514 Youssef v. Costco Wholesale Corporation 11:00 a.m.	Order to Show Cause regarding Dismissal.
21	30-2022-01243106 Carbon Capital Fund, LLC v. Saavedra 11:00 a.m.	Case Management Conference. Order to Show Cause Hearing.
22	30-2020-01145810	Status Conference.

	Hatch v. Fallace 11:00 a.m.	
23	30-2021-01229882 Schiffer v. Rialto Breeze Partners 11:00 a.m.	Status Conference.
24	30-2022-01277226 Robbins v. Claim Jumper Acquisition Company, LLC 11:00 a.m.	Review Hearing.
25	30-2022-01253878 Schlesinger v. City of Mission Viejo 2:00 p.m.	Motion regarding Costs.
26	30-2022-01262431 People of the State of California v. Sachs 2:00 p.m.	Motion regarding Costs.
27	30-2023-01309653 Wells Fargo Bank v. August 11:00 a.m.	Status Conference regarding Settlement.
28	30-2021-01215534 Weger v. Kia America, Inc.	Defendant's (Kia America, Inc.) Motion for Summary Judgment, or in the Alternative, Summary Adjudication (Motion), filed on 7-6-23 under ROA No. 270, is **GRANTED** in part and **DENIED** in part as set forth below. The Notice of this Motion (Notice) was filed on 7-6-23 under ROA No. 278.) Defendant's Evidentiary Objections to the Declaration of Daniel Law filed on 9-14-23 under ROA No. 304: The court **SUSTAINS** all of the objections. Defendant's Evidentiary Objections to the Declaration of Marilyn Weger filed on 9-14-23 under ROA No. 303: The court **OVERRULES** all of the objections. Code of Civil Procedure section 437c, subdivision (p)(2) provides, "A defendant . . . has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that

		cause of action. Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto." Code of Civil Procedure section 437c, subdivision (f)(1), provides, "A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has not merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim of damages, or an issue of duty." *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850-851, (*Aguilar*), states, "Second, and generally, the party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact. Although not expressly, the 1992 and 1993 amendments impliedly provide in this regard for a burden of *production* as opposed to a burden of *persuasion*. A burden of production entails only the presentation of 'evidence.' (Evid. Code, § 110.) A burden of persuasion, however, entails the 'establish[ment]' through such evidence of a 'requisite degree of belief.' (*Id.*, § 115.) It would make little, if any, sense to allow for the shifting of a burden of persuasion. For if the moving party carries a burden of persuasion, the opposing party can do nothing other than concede. Further, although not expressly, the 1992 and 1993 amendments impliedly provide for a burden of production *to make a prima facie showing*. A prima facie showing is one that is sufficient to support the position of the party in question. [Citation.]" (Italics in *Aguilar*; Footnotes 13 and 14 omitted.) *Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 838 (*Binder*) states, "Although summary judgment might no longer be considered a 'disfavored' procedure, [citation], the rule continues that the moving party's evidence must be strictly construed, while the opposing party's evidence must be liberally construed." "On a

		summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. [Citation.]" (*Id*., at p. 839.) *Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 756-757, provides, "The plaintiff can defeat a defense motion for summary judgment by showing either that the defense evidence itself permits conflicting inferences as to the existence of the specified fact, or by presenting additional evidence of its existence. [Citation.] The dispositive question in all cases is whether the evidence before the court, viewed as a whole, permits only a finding favorable to the defendant with respect to one or more necessary elements of the plaintiff's claims—that is, whether it negates an element of the claim 'as a matter of law.' [Citation.]" *Hufft v. Horowitz* (1992) 4 Cal.App.4th 8, 12-13 (*Hufft*) states, "The determination whether triable facts exist must be made in light of the issues defined by the pleadings. [Citation.] If a plaintiff pleads several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. 'The moving defendant whose declarations omit facts as to any such theory . . . permits that portion of the complaint to be unchallenged.' [Citation.] Where, as in this case, no opposition is presented, the moving party still has the burden of eliminating all triable issues of fact. [Citation.]" (See also, *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468 (*Consumer Cause*).) The Motion seeks summary adjudication of the first, second, third, fourth fifth, and sixth causes of action. contained in Plaintiffs' (Marilyn Weger and Micah Weger) First Amended Complaint (FAC), filed on 11-15-22 under ROA No. 185. (Notice; 1:25-3:4.) **Issue No. 1—Plaintiffs' First Cause of Action for Violation of Subdivision (d) of Civil Code Section 1793.2 fails as a matter of law because the undisputed facts defeat one or more elements of the cause of action, in the absence of evidence of any warranted defect or nonconformity to warranty that was not successfully repaired within a reasonable number of attempts:** Code of Civil Procedure section 1793.2, subdivision (d), states, "(1) Except as provided in paragraph (2), if the manufacturer or its representative in this state does not service or repair the goods to conform to the applicable

		express warranties after a reasonable number of attempts, the manufacturer shall either replace the goods or reimburse the buyer in an amount equal to the purchase price paid by the buyer, less that amount directly attributable to use by the buyer prior to the discovery of the nonconformity. [¶] (2) If the manufacturer or its representative in this state is unable to service or repair a new motor vehicle, as that term is defined in paragraph (2) of subdivision (e) of Section 1793.22, to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either promptly replace the new motor vehicle in accordance with subparagraph (A) or promptly make restitution to the buyer in accordance with subparagraph (B). However, the buyer shall be free to elect restitution in lieu of replacement, and in no event shall the buyer be required by the manufacturer to accept a replacement vehicle." *Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101 (*Oregel*), states, "A plaintiff pursuing an action under the Act has the burden to prove that (1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use, value or safety of the vehicle (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts (the failure to repair element). [Citations.]" (See also, CACI No. 3200.) *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208 (*Silvio*), explains, "The statute requires the manufacturer to afford the specified remedies of restitution or replacement if that manufacturer is unable to repair the vehicle 'after a reasonable number of *attempts*.' 'Attempts' is plural. The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle." (Italics in *Silvio*.) "Nor are appellants assisted by their citation to *Ibrahim v. Ford Motor Co.* (1989) 214 Cal.App.3d 878 [263 Cal.Rptr. 64]. As appellants argue, the case holds that the reasonableness of the number of attempts is a question of fact for the trier of fact. We do not quarrel with that holding, but do not believe that it addresses the issue here, whether 'attempts,' as used in Civil Code section 1793.2, subdivision (d)(2), requires more than one attempt. A trier of fact might determine that two or three or more attempts were reasonable under the circumstances of a case or were unreasonable under those circumstances. A single attempt does not meet the

		statutory threshold, so that there is no need for a trier of fact to determine its reasonableness." (*Id*., at pp. 1208-1209.) *Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 799 (*Robertson*), provides, "The reasonableness of the number of repair attempts is a question of fact to be determined in light of the circumstances, but at a minimum there must be more than one opportunity to fix the nonconformity. [Citation.]" The Motion states, "In sum, the undisputed facts show that there was only **one visit** resulting in warranty repairs, with no return visits, for an alleged "defect" for which Plaintiffs presented the Subject Vehicle that was covered under a KA warranty." (Motion; 6:1-3 (Emphasis and underscore in Motion.).) Paragraph 11 of the FAC describes the defects in Plaintiffs' vehicle as ". . . various defects, including but not limited to, defects related to the powertrain system, including the engine, and/or transmission; and other defects." The court finds that Defendant has met its initial burden of proof of demonstrating that there was only one repair attempt. Defendant provides the following evidence: (1) The repair visit on 7-22-16 was pursuant to a safety recall. (Johal Decl., ¶ 10(a) and Exhibits 3, 4, and 5.); (2) The repair visit on 5-25-18 was pursuant to a complaint that Plaintiffs' vehicle was making ". . . knocking noise while driving. . . ." (Johal Decl., ¶ 10(b).) Defendant addressed this complaint by replacing the engine in Plaintiff's vehicle. (Johal Decl., ¶10(b) and Exhibits 6 and 7.); and (3) The visit on 10-2-20 was pursuant to a ". . . Product Improvement Campaign . . ." and ". . . Safety Recall Campaign . . . ." (Johal Decl., ¶ 10(c) and Exhibits 8, 9, and 10.) Defendant's evidence shows that Plaintiffs brought their vehicle to Defendant for only one repair visit on 5-15-18 related to the defect at issue in the FAC. Defendant's evidence is sufficient to demonstrate that the visits on 7-22-16 and 10-2-20 were for repairs where the alleged defect had not appeared. Plaintiff's evidence, however, is sufficient to create a triable issue of material fact as to whether Plaintiffs brought their vehicle to Defendant on 7-22-16 and 10-2-20 for complaints regarding the engine. The declaration of Marilyn Weger states Plaintiff—Marilyn Weger presented Plaintiffs' vehicle to Defendant on 5-26-13, 7-22-16, 5-15-18, and 10-2-20 for complaints or concerns regarding the engine. (Marilyn Weger Decl., ¶¶ 10-15.) The court finds that Plaintiffs' evidence is sufficient to create a triable issue of material fact as to whether

		Defendant was unable to repair Plaintiffs' vehicle after a reasonable number or repair attempts. Thus, the court **DENIES** the Motion for Summary Adjudication as to Issue No. 1. **Issue No. 2— Plaintiffs' Second Cause of Action for violation of Civil Code section 1793.2, subdivision (b)(2) fails as a matter of law because Plaintiffs have not provided evidence of any actual damages they suffered as a result of the sole KA-warranted repair which took longer than 30 days to complete nor evidence of timely revocation of acceptance of Subject Vehicle:** Civil Code section 1793.2, subdivision (b), states, "Where those service and repair facilities are maintained in this state and service or repair of the goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative in this state. Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days. Delay caused by conditions beyond the control of the manufacturer or its representatives shall serve to extend this 30-day requirement. Where delay arises, conforming goods shall be tendered as soon as possible following termination of the condition giving rise to the delay." The Motion asserts, "According to the information provided in the May 15, 2018 repair order for the engine replacement, that repair took more than 30 days. However, Plaintiffs have not presented evidence as far as any damages they actually and reasonably incurred caused by the repair visit that lasted over 30 days. Evidence of such damages is necessary for success on this cause of action, and since Plaintiffs has failed to provide any evidence of such damage, the claim must fail." (Motion; 6:11-15.) Plaintiff's Opposition to Defendant's Motion for Summary Judgment, or in the Alternative Summary Adjudication (Opposition), filed on 9-7-23 under ROA No. 293, states, "Further, Plaintiff suffered damages in the form or rental car payments . . . ." In Plaintiffs Separate Statement (PSS), filed on 9-7-23 under ROA No. 296, Defendant relies on the declaration of Jennifer C. Koo at paragraphs 5-9 and Exhibits B, C, D, E, and F (PSS No. 21) for the evidence that Plaintiffs have not suffered any damages. Defendant's evidence is sufficient to carry its initial burden of proof to demonstrate that Plaintiffs have not suffered damages.

		Plaintiff's evidence, however, is sufficient to create a triable issue of material fact as to whether Plaintiffs incurred damages during the period of time Defendant had Plaintiffs' vehicle to replace the engine. Plaintiff—Marilyn Weger's declaration states in part, ". . . I paid approximately $500.00 in total for the rental vehicle during that time . . . Also . . . I had to purchase a plane ticket to fly down in order to retrieve the Vehicle after repairs were completed. (Marilyn Weger Decl., ¶ 14.) The court finds that Plaintiffs' evidence is sufficient to create a triable issue of material fact as to whether Defendant incurred damages based on the 5-15-18 visit that resulted in the replacement of the engine. Thus, the court **DENIES** the Motion for Summary Adjudication as to Issue No. 2. **Issue No. 3— Plaintiffs' Third Cause of Action for Violation of Subdivision (a)(3) of Civil Code Section 1793.2 fails as a matter of law because Plaintiffs have offered no evidence that KA provided insufficient literature or replacement parts necessary to perform any KA-warranted repair:** Civil Code Section 1793.2, subdivision (a)(3) provides, "Every manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall: . . . (3) Make available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." The Motion states, "Plaintiffs has [*sic*] come forward with <u>no evidence</u> that KA failed to make available to its authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." (Motion; 9:18-20 (Underscore in Motion.).) The Opposition responds, ". . . Defendant relies solely on the declaration of Mr. Johal, who repeatedly concedes he has no qualifications or expertise to review the sufficiency of Defendant's service literature." (Opposition; 12:14-15.) The declaration from Kyran Johal states, "According to my review of the repair orders and warranty history, at all times during the warranty period applicable to the Subject Vehicle, KA made available to the dealerships sufficient service literature and replacement parts to perform the repairs to the Subject Vehicle. No part or literature was unavailable for any repair. No part or literature was unavailable for any repair during the express warranty period applicable to the Subject Vehicle." (Johal Decl., ¶

		12.) Defendant's evidence is sufficient to that the dealerships had sufficient service literature and parts to make repairs to Plaintiffs' vehicle. Plaintiff relies on the Kyran Johal's deposition testimony to attempt to create a triable issue of material fact as to whether the dealerships had sufficient service literature and parts for perform the repairs. (PSS No. 31; Law Decl., ¶ 28 and Exhibit 25; Opposition; 12:14-16.) Although Kyran Johal may not have the expertise to address whether the literature is sufficient from a technical standpoint (Law Decl., ¶ 28 and Exhibit 25 (for example, see Johal Depo. at 18:11-16 39:14-25 and 41:11-42:4), the Johal declaration is sufficient to demonstrate that the dealerships have sufficient literature and parts to perform the repairs. Plaintiffs have not presented evidence that the literature and parts provided to dealerships was insufficient. Therefore, the court **GRANTS** the Motion for Summary Adjudication as to Issue No. 3. **Issue No. 4—Plaintiffs' Fourth Cause of Action for violation of Breach of Express Warranty fails as a matter of law because KA fully complied with its obligations under any express warranty covering the Subject Vehicle."** The Motion contends, "Plaintiffs' repetitive Fourth Cause of Action for breach of express warranty fails for the same reasons their First Cause of Action does—KA fully complied with the terms of its express warranties by repairing or replacing components shown to be defective in materials or workmanship." (Motion; 10:4-7.) Since the court has **DENIED** the Motion for Summary Adjudication as to the first cause of action (Issue No. 1), the court **DENIES** the Motion for Summary Adjudication as to Issue No. 4 for the same reasons as stated for Issue No. 1. **Issue No. 5—Plaintiffs' Fifth Cause of Action for Breach of Implied Warranty fails as a matter of law because the undisputed facts defeat one or more elements of the cause of action, in the absence of evidence of a defect or nonconformity rendering the Subject Vehicle unmerchantable during the first year of ownership:** On 4-18-23, the court **SUSTAINED** the Demurrer to the fifth cause of action (Breach of the Implied Warranty of Merchantability) with 14 days leave to amend. (4-18-23 Minute Order.) Plaintiff has not filed a subsequent

		amended complaint. Therefore, the Motion is **MOOT** as to Issue No. 5 because the fifth cause of action is no longer cause of action in this case. **Issue No. 6—Plaintiffs' Fifth Cause of Action for violation of Breach of Implied Warranty fails as a matter of law because the claim is barred by the applicable statute of limitations.** The Motion is **MOOT** as to Issue No. 6 for the same reasons as stated for Issue No. 5. **Issue No. 7—Plaintiffs' Sixth Cause of Action for Fraud by Omission fails as a matter of law because Plaintiffs cannot meet the necessary elements of a fraud cause of action, including Plaintiffs cannot establish KA owed him a duty of disclosure, KA did not have exclusive knowledge of a defect in the Subject Vehicle before purchase, KA did not actively conceal any such defect from Plaintiffs, and Plaintiffs have no evidence of fraud damages:** "The elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." ' [Citation.] Fraud must be pleaded with specificity rather than with ' "general and conclusory" ' allegations. [Citation.] (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248 (*Boschma*); See also, CACI No. 1901.) *LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336 (*LiMandri*), provides, "There are 'four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]' [Citation.]" *Santana v. FCA US, LLC* (2020) 56 Cal.App.5th 334, 345-346 (*Santana*), acknowledged the viability of a fraudulent concealment cause of action arising out of the purchase of a vehicle. *Santana* states, "The sum total of the

		evidence on that front is the following: a publicly disclosed 2007 recall related to a software problem that apparently was fixed; an issue that cropped up in 2008 and 2009, with an unknown frequency, in a different vehicle, where a TIPM was drawing too much power when the vehicle was not in use; and a 2009 internal e-mail exchange regarding the heating and air conditioning front blower in some vehicle that occurred some amount of times that had something to do with a relay in a TIPM. All the other evidence post-dates the critical time period, which is pre-November 2011. [¶] That is not enough. The very existence of a warranty presupposes that some defects may occur. Thus, the occurrence of a few defects that, so far as the record reveals, were all fixable, and mostly involved vehicles Santana did not own, is not enough to demonstrate an intent to conceal a defect in the TIPM. Santana would need evidence that, prior to Santana's purchase of the vehicle, Chrysler was aware of a defect in the TIPM that it was either unwilling or unable to fix. There was no such evidence." (*Ibid*, Footnote 4 omitted.) As to whether there was a duty to disclose, the Motion states, "If there is no direct transaction, there is no opportunity for the defendant to make any sort of disclosure. There is no direct transaction here. Plaintiffs purchased the vehicle from Kia of Serramonte, not KA." (Motion; 13:10-11.) The Opposition states, "Kia was obligated to disclose Theta II engine defects because it had exclusive knowledge and actively concealed them." (Opposition; 14:6-7.) *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 844 (*Dhital*), states, ". . . Nissan argues plaintiffs did not adequately plead the existence of a buyer-seller relationship between the parties, because plaintiffs bought the car from a Nissan dealership (not from Nissan itself). At the pleading stage (and in the absence of a more developed argument by Nissan on this point), we conclude plaintiffs' allegations are sufficient. Plaintiffs alleged that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. In light of these allegations, we decline to hold plaintiffs' claim is barred on the ground there was no relationship requiring Nissan to disclose known defects." *Dhital* also found that damages were alleged ". . . in the form of money paid to purchase the car." (*Ibid*.) The California Supreme Court has granted review of *Dhital*, but denied a request for de-publication. (See California Supreme Court Opinion at 523 P.3d 392.) California Rules of Court, rule 8.1115(e)(1), states, "Pending review and filing of the Supreme Court's opinion, unless otherwise

		ordered by the Supreme Court under (3), a published opinion of a Court of Appeal in the matter has no binding or precedential effect, and may be cited for potentially persuasive value only. Any citation to the Court of Appeal opinion must also note the grant of review and any subsequent action by the Supreme Court." The parties do not dispute that Plaintiffs bought the vehicle from Kia of Serramonte. (PSS No. 49.) The parties do not appear to dispute that Defendant provided an express warranty for this vehicle. (PSS No. 2 at p. 2 of the PSS, and PSS No. 2 at p. 43 of the PSS.) Defendant does not appear to dispute that it manufactured Plaintiffs' vehicle by distributing it to Kia of Serramonte. (PSS No. 1.) The parties do not appear to dispute that Kia of Serramonte was an authorized dealer for Defendant. (PSS No. 1 at p. 43 of the PSS.) The court finds that Defendant has carried its initial burden of demonstrating that it did not have a duty to disclose because there was no direct buyer-seller relationship between Plaintiffs and Defendant. The evidence, however, creates a triable issue of material fact as to whether there was a duty to disclose based on Defendant's exclusive knowledge of material facts not known to Plaintiffs. As the manufacturer of Plaintiffs' vehicle sold to Plaintiffs through a dealer authorized by Defendant, the court finds that there is a sufficient relationship requiring Defendant to disclose known defects. The Motion next states, "Even if Plaintiffs could somehow prove there was a direct transaction, they cannot show that KA had exclusive knowledge of the alleged engine defect and actively concealed it from them. . . . Plaintiffs must produce admissible evidence that before they purchased the Subject Vehicle, KA was aware of defects it was unwilling or unable to fix at the time of purchase. . . ." (Motion; 14:25-26 and 15:9-11.) The Opposition states, ". . . Kia's own documents demonstrate an intentional and systematic campaign to conceal Theta II engine defects from the public (including Plaintiff) and even from the government. . . ." (Opposition; 16:4-5.) PSS No. 88 states, "Plaintiffs have produced no evidence supporting their claim of fraud by omission." *Bayramoglu v. Nationstar Mortgage LLC* (2020) 51 Cal.App.5th 726, 733 (*Bayramoglu*), states, "A plaintiff's 'factually devoid' discovery responses may be used to shift the burden of production onto the plaintiff when the 'logical inference' is that the plaintiff possesses no facts to support his or her claims. [Citation.]" *Andrews v. Foster Wheeler LLC* (2006) 138 Cal.App.4th 96, 106-107 (*Andrews*),

		provides, "*Scheiding* presumed, as a matter of law, that plaintiffs' responses to comprehensive discovery must fully disclose the evidence known to them at the time of their responses. Parties have a duty to respond to discovery requests 'as completely and straightforwardly as possible given the information available to them.' [Citation.] When defendants conduct comprehensive discovery, plaintiffs cannot play 'hide the ball.' Moreover, it is not reasonable for courts to infer pursuant to Code of Civil Procedure section 437c, subdivision (c), that defendants can discover further material facts from plaintiffs' lists of people and documents if the plaintiffs do not disclose any facts known by such persons or contained in such documents when asked to do so. In moving for summary judgment, '[t]he defendant may . . . present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence—as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.' [Citation.] If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiffs' factually devoid discovery responses." (Footnote 3 omitted.) PSS No. 88 relies on the declaration from Jennifer C. Koo to support that Plaintiff provided factually devoid discovery responses. PSS No. 88 does not direct the court to a specific discovery response regarding whether Plaintiffs have produced evidence supporting their claim for fraud by omission. For example, in response to Form Interrogatory 17.1, Plaintiffs referred Defendant to documents that Plaintiffs produce in response to Defendant's Requests for Production of Documents. (Koo Decl., ¶ 10 and Exhibit G.) By referring Defendant to documents that Plaintiffs had produced, Plaintiffs discovery responses are not factually devoid. Viewing the discovery responses, the court finds that the responses are not factually devoid because they do not lead to the logical inference that Plaintiffs possess no facts to support their claim for fraud by omission. Thus, the court finds that Defendant has not met its initial burden of providing evidence showing the nonexistence of a triable issue of material fact as to whether Defendant was aware of the engine defect and that it was unwilling or unable to fix the engine defect. Therefore, the court **DENIES** the Motion for Summary Adjudication as to Issue No. 7.

		Issue No. 8—Plaintiffs' Sixth Cause of Action for Fraud by Omission fails as a matter of law because it is barred by the Economic Loss Doctrine. As to whether the economic loss rule applies, *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988 (*Robinson*), states, "We begin with a brief background on the economic loss rule. Economic loss consists of damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits—without any claim of personal injury or damages to other property. . . [Citation.] [Citation.] Simply stated, the economic loss rule provides: [W]here a purchaser's expectations in a sale are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only economic losses. This doctrine hinges on a distinction drawn between transactions involving the sale of goods for commercial purposes where economic expectations are protected by commercial and contract law, and those involving the sale of defective products to individual consumers who are injured in a manner which has traditionally been remedied by resort to the law of torts. [Citation.] The economic loss rule requires a purchaser to recover in contract for purely economic loss due to disappointed expectations, unless he can demonstrate harm above and beyond a broken contractual promise. [Citation.] Quite simply, the economic loss rule prevent[s] the law of contract and the law of tort from dissolving one into the other. [Citation.]" (Internal quotation marks omitted.) "We hold the economic loss rule does not bar Robinson's fraud and intentional misrepresentation claims because they were independent of Dana's breach of contract. [Citation.] Because Dana's affirmative intentional misrepresentations of fact (i.e., the issuance of the false certificates of conformance) are dispositive fraudulent conduct related to the performance of the contract, we need not address the issue of whether Dana's intentional concealment constitutes an independent tort." (*Id*., at p. 991; Footnote 7 omitted.) *Robinson* did not directly address the issue as to whether a cause of action for intentional concealment is an intentional tort for the purpose of applying the economic loss rule. Under *Santana*, a cause of action for intentional concealment is viable in the context of a purchase of a vehicle. The court will follow *Santana*. Therefore, the court **DENIES** the Motion for Summary Adjudication as to Issue No. 8.

		In summary, the court **GRANTS** Defendant's (Kia America, Inc.) Motion for Summary Judgment, or in the Alternative, Summary Adjudication, filed on 7-6-23 under ROA No. 270, as to Issue No. 3. The court **DENIES** the Motion as to Issue Nos. 1, 2, 4, 7, and 8. The Motion is **MOOT** as to Issue Nos. 5 and 6. Since the court has **DENIED** some of the issues presented for summary adjudication, the court **DENIES** the Motion for Summary Judgment. Plaintiff is to give notice.